

I. MULTIFAMILY PROGRAMS- ALLOCATIONS

- A. [RFA 2025-213 Live Local SAIL Financing for Mixed Income, Mixed-Use, and Urban Infill Developments](#)
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II. PROFESSIONAL SERVICES SELECTION (PSS)

- A. [Request for Qualifications \(RFQ\) 2025-04, for Credit Underwriting, Permanent and Construction Loan Servicing, and Compliance Monitoring Services](#)
- B. [Request for Qualifications \(RFQ\) 2025-09, for Inclusion in a Pool of Energy Consumption Model Utility Allowance Estimate Providers](#)

MULTIFAMILY PROGRAMS - ALLOCATIONS

Action

I. MULTIFAMILY PROGRAMS - ALLOCATIONS

A. RFA 2025-213 Live Local SAIL Financing for Mixed Income, Mixed-Use, and Urban Infill Developments

1. Background:

- a) On August 28, 2025, Florida Housing Finance Corporation (Florida Housing) issued RFA 2025-213 offering \$100,000,000 in Live Local SAIL funding, which may be used in conjunction with Tax-Exempt Bonds and 4% Housing Credits, for Applicants of Developments that qualify as a Mixed-Income Development and either an Urban Infill Development or a Mixed-Use Development for Families and Elderly.
- b) The deadline for receipt of Applications was 3:00 p.m., Eastern Time, September 17, 2025.

2. Present Situation:

- a) Florida Housing received 47 Applications in response to this RFA. The Review Committee members, designated by the Chief Financial Officer, were Chase Cohee, Multifamily Programs Credit Underwriting Coordinator (Chair), Obi Okeke, Multifamily Programs Manager, and Hannah Preiser, Multifamily Programs Analyst. Each member of the Review Committee independently evaluated and scored their assigned portions of the submitted Applications, consulting with non-committee staff and legal counsel as necessary and appropriate.
- b) At its October 1, 2025, Review Committee meeting, the individual committee members presented their scores and the Committee carried out the funding selection process in accordance with Section Five, B. of the RFA. The individual scores are set forth on the RFA webpage and can be accessed here.
- c) The RFA 2025-213 All Applications chart (provided as [Exhibit A](#)) lists the eligible and ineligible Applications. The eligible Applications (i.e., Applications that met all criteria to be eligible to be considered for funding) and the ineligible Applications are listed in assigned Application Number order.
- d) The Review Committee considered the following motions:
 - (1) A motion for the Review Committee to approve the scoring results set out on [Exhibit A](#) and recommendations for funding as set out on [Exhibit B](#).
 - (2) A motion to recommend that the Board approve the scoring results set out on Exhibit A and recommendations for funding as set out on Exhibit B.
- e) The motions passed unanimously.

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3. **Recommendation:**

- a) Approve the Committee's recommendations that the Board adopt the scoring results of the 47 Applications and authorize the tentative selection of the 11 Applications (set out on Exhibit B) for funding.
- b) If no notice of protest or formal written protest is filed in accordance with Section 120.57(3), Fla. Stat., et. al., staff will proceed to issue an invitation to enter credit underwriting to the Applications set out on [Exhibit B](#).
- c) If a notice of protest or formal written protest is filed in accordance with Section 120.57(3), Fla. Stat., et. al., then at the completion of all litigation for those Applicants impacted by litigation, staff will present all Recommended Orders for Board approval prior to issuing invitations to enter credit underwriting to those Applicants in the resulting funding range. For those Applications in the funding range but not impacted by litigation, staff will issue invitations to underwriting as outlined in rule 67-48.0072(1), F.A.C.
- d) There is \$63,223 in Live Local SAIL funding remaining. As provided in Section Five, B. of the RFA, any remaining funding will be distributed as approved by the Board.

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B. Request to Allocate Returned Funding from RFA 2024-214 Live Local SAIL Financing to be used for Developing and Reconstructing Affordable Multifamily Housing Developments

1. Background

- a) Towne Villas I (2025-125BS) & Towne Villas II (2025-126BS) were invited to enter Credit Underwriting in response to RFA 2024-214 Live Local SAIL Financing to be used for Developing and Reconstructing Affordable Multifamily Housing Developments on September 13, 2024.
- b) Each Development was awarded \$12 million in Live Local SAIL Financing, for a total of \$24 million.

2. Present Situation

- a) On September 4, 2025, staff received a letter returning funding for both Towne Villas I and Towne Villas II ([Exhibit C](#)).
- b) Returned funding totals \$24 million in Live Local SAIL Financing.
- c) RFA 2025-215 Live Local SAIL Financing to be used for Developing and Reconstructing Affordable Multifamily Housing Developments has not yet been issued.
- d) \$20 million of Live Local SAIL Financing, appropriated by the 2025 Legislature, is currently anticipated in RFA 2025-215.
- e) Staff expect to hold a workshop regarding RFA 2025-215 in November 2025.
- f) Staff requests the returned funding from RFA 2024-214 be allocated to RFA 2025-214, resulting in \$44 million for RFA 2025-214.

3. Recommendation

- a) Authorize staff to allocate Live Local SAIL funding from Towne Villas I and Towne Villas II to RFA 2025-214.

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C. Request to issue an Invitation to Participate (ITP) for a Pilot Program for Standby Generators for Elderly and Permanent Supportive Housing Developments in the Corporation's Portfolio

1. Background

- a) In the 2024-2025 RFA Cycle, Florida Housing began requiring standby generators for all Elderly and Special Needs Developments.

2. Present Situation

- a) Staff held a conceptual workshop on September 29, 2025, presenting preliminary eligibility requirements and processes, and requesting stakeholder comment.
- b) Staff anticipates inviting Applicants of Developments funded through RFAs that did not contain the requirement for a standby generator, and where the Development does not currently have a generator installed. Staff will review past RFAs, beginning with those issued in the 2023-2024 RFA Cycle, that would be eligible for participation.
- c) Staff requests Board approval to offer up to \$10 million in disaster recovery funding (as approved by the Board September 8, 2024) as grant funding in this Pilot Program.

3. Recommendation

- a) Approve staff's recommendation utilize up to \$10 million in disaster recovery funding as grant funding to develop and issue an ITP for standby generators for Elderly and Permanent Supportive Housing Developments in the Corporation's Portfolio.

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D. Open Non-Competitive Application Package for Corporation-Issued MMRB and Non-Competitive Housing Credits for Applications Meeting Certain Criteria

1. Background

- a) The Non-Competitive Application Package for Corporation-issued MMRB and Non-Competitive Housing Credits is closed for new applications because of limited availability of state bond allocation. Demand for bond allocation remains at an extremely high level and Florida Housing continues to be cap constrained. Florida Housing is currently oversubscribed in regard to total MMRB available by an estimated \$963 million.

2. Present Situation

- a) Recent legislation decreased the minimum 50% threshold for the MMRB program to 25%. This means that prior to the change 50% of the aggregate basis of a development had to be financed with MMRB in order to gain access to the 4% Housing Credit. With the change, only 25% of the aggregate basis of a development will need to be financed with MMRB in order to gain access to the 4% Housing Credit. This change will allow Florida Housing to allocate less MMRB to developments, which should allow Florida Housing to allocate resources to a higher number of developments.
- b) Staff has received multiple points of advocacy to open the Non-Competitive Application Package for Corporation-Issued MMRB and Non-Competitive Housing Credits, particularly from potential Applicants that have existing sites that will lose QCT/DDA statuses at the end of the year, which are essential for financial feasibility in many developments.
- c) Staff is willing to take advantage of the new federal regulations to continue to promote development throughout the state. However, we will recommend conditions to limit the amount of allocation that can be requested and to ensure developments that apply have high levels of ability to proceed including:
 - (1) Submitted Applications may make a request of MMRB no greater than 30% of Total Development Cost.
 - (2) Staff will close the Non-Competitive Application Package for Corporation-Issued MMRB and Non-Competitive Housing Credits upon receipt of \$100 million in MMRB request. Any requests for MMRB that is above \$100 million in totality will be denied.
 - (3) To ensure Applications do not amplify already constrained allocation in impending years, submitted Applications that do not at a minimum complete credit underwriting by December 31, 2026, will be required to withdraw from funding, unless otherwise approved by the Board.
 - (4) Any Applicant or Developer Principal of Non-Competitive Applications submitted in response to the Board's March 28, 2025, approval to temporarily open the Non-Competitive Application Package but has not completed credit underwriting will not be eligible to apply.

MULTIFAMILY PROGRAMS - ALLOCATIONS

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- (5) If the Application is not completely cured and an Invitation to Credit Underwriting has not been issued to the Applicant by December 19, 2025, the Application will be denied.
- d) Moving forward, in future RFA cycles, staff will decrease the percentage of MMRB that Applicants may request in an effort to balance the supply/demand of available MMRB.

3. Recommendation

- a) Approve staff to temporarily (until \$100 million in MMRB requests are received) open the Non-Competitive Application Package for Corporation-issued MMRB and Non-Competitive Housing Credits, to Applicants that can meet the following requirements:
 - (1) Submitted Applications may make a request of MMRB no greater than 30% of Total Development Cost.
 - (2) Staff will close the Non-Competitive Application Package for Corporation-Issued MMRB and Non-Competitive Housing Credits upon receipt of \$100 million in MMRB requests. Any request for MMRB that is above \$100 million in totality will be denied.
 - (3) To ensure Applications do not amplify already constrained allocation in impending years, submitted Applications that do not at a minimum complete credit underwriting by December 31, 2026, will be required to withdraw from funding, unless otherwise approved by the Board.
 - (4) Any Applicant or Developer Principal of Non-Competitive Applications submitted in response to the Board's March 28, 2025, approval to temporarily open the Non-Competitive Application Package but has not completed credit underwriting will not be eligible to apply.
 - (5) If the Application is not completely cured and an Invitation to Credit Underwriting has not been issued to the Applicant by December 19, 2025, the Application will be denied.

PROFESSIONAL SERVICES SELECTION (PSS)

Action

II. PROFESSIONAL SERVICES SELECTION (PSS)

A. Request for Qualifications (RFQ) 2025-04, for Credit Underwriting, Permanent and Construction Loan Servicing, and Compliance Monitoring Services

1. Background:

- a) On August 13, 2025, Florida Housing staff issued a competitive solicitation for qualified firms to provide Credit Underwriting, Permanent and Construction Loan Servicing, and Compliance Monitoring Services. A review committee was established to make a recommendation to the Board.

2. Present Situation:

- a) The deadline for receipt of responses was 2:00 p.m., September 16, 2025. A copy of the RFQ and Addendum #1 are provided as [Exhibit A](#).
- b) Three responsive proposals were received from:
- AmeriNat, LLC
 - First Housing Development Corporation of Florida
 - Seltzer Management Group, Inc.
- c) Members of the review committee were Marisa Button, Managing Director of Strategic Initiatives (Chairperson); Kenny Derrickson, Assistant Comptroller; Nicole Gibson, Federal Loan Programs Director; Edny Thomas, Senior Compliance Analyst and Tracy Willis, Development Finance Administrator.
- d) Each member of the review committee individually reviewed the proposals prior to convening for the Review Committee meeting which was held at 2:00 p.m., October 1, 2025.
- e) At the October 1st meeting, the review committee provided final scores for the responses. The score sheet is provided as [Exhibit B](#).

3. Recommendation:

- a) The review committee recommends that Florida Housing enter into contract negotiations with all three respondents listed above.

PROFESSIONAL SERVICES SELECTION (PSS)

Action

B. Request for Qualifications (RFQ) 2025-09, for Inclusion in a Pool of Energy Consumption Model Utility Allowance Estimate Providers

1. Background:

- a) On August 18, 2025, Florida Housing staff issued a competitive solicitation for qualified firms to be included in a pool of Energy Consumption Model Utility Allowance Estimate Providers. A review committee was established to make a recommendation to the Board.

2. Present Situation:

- a) The deadline for receipt of responses was 3:00 p.m., September 16, 2025. A copy of the RFQ is provided as [Exhibit C](#).
- b) Eleven proposals were received. Of these, eight were deemed responsive as listed below:
 - Diamond Property Consultants, Inc., in partnership with Enercon Services, Inc.
 - Energy Bees, LLC
 - Energy Diagnostics, Inc.
 - KN Consultants, LLC
 - Matern Professional Engineering, Inc.
 - UCF – Florida Solar Energy Center
 - Utilotus, LLC d/b/a Zappling
 - Walker Blue, LLC
- c) Members of the review committee were Matt Jugenheimer, Development Finance Administrator (Chairperson); Joketra Hall, Senior Compliance Analyst; and George Shawhan, Senior Compliance Analyst.
- d) Each member of the review committee individually reviewed the proposals prior to convening for the Review Committee meeting, which was held at 10:00 a.m., September 30, 2025.
- e) At the September 30th meeting, the review committee provided final scores for the responsive proposals. The score sheet is provided as [Exhibit D](#).

3. Recommendation:

- a) The review committee recommends that Florida Housing enter into contract negotiations with the eight responsive respondents listed above for inclusion in the qualified pool of Energy Consumption Model Utility Allowance Estimate Providers. In addition, staff recommends issuing a new RFQ to expand the pool of qualified providers, based on the substantial growth in Florida Housing's portfolio relative to the modest increase in pool participants. This action will support program capacity and continuity while ensuring sufficient competition.

RFA 2025-213 - All Applications

Application Number	Name of Development	County	County Size	Name of Authorized Principal Representative	Name of Developer	Development Type	Demo	Units	Total Live Local SAIL Request Amount (SAIL plus ELI)	Eligible For Funding?	Publicly Owned Lands Development Goal	Youth Aging Out of Foster Care Goal	Urban In-Fill Development	Mixed-Use Development	Elderly, Mixed-Use Development	Florida Keys Area Goal	Permit Ready Goal	Priority Level	Total Points	Tier Level	A/B/C Leveraging	Proximity Funding Preference	Florida Job Creation Preference	Lottery Number
2026-001S	Hollywood Vista	Broward	L	Matthew A. Rieger	HTG Vista Developer, LLC	HR	F	118	7,316,000	Y	Y	Y	Y	Y	N	N	N	1	10	1	B	Y	Y	8
2026-002BS	Twin Lakes Estates - Phase III	Polk	L	Matthew A. Rieger	HTG Twin Lakes III Developer, LLC; Polk County Housing Developers, Inc.	G	F	92	6,600,000	Y	Y	Y	Y	Y	N	N	N	1	10	2	B	Y	Y	33
2026-004S	Gallery at SoMi Parc Phase Two	Miami-Dade	L	Alberto Milo, Jr.	Gallery at SoMi Parc Phase Two Developer, LLC	HR	F	323	12,750,000	Y	Y	N	Y	N	N	N	N	1	10	1	A	Y	Y	47
2026-005BS	Culmer Place on 10th	Miami-Dade	L	Kenneth Naylor	APC Culmer Development III, LLC	HR	F	276	15,250,000	Y	Y	Y	Y	N	N	N	N	1	10	1	B	Y	Y	2
2026-006S	Ekos at Bayonet Point III	Pasco	M	Christopher L. Shear	MHP Pasco III Developer, LLC	MR 5/6	F	126	8,000,777	Y	N	N	Y	N	N	N	N	1	10	2	A	Y	Y	20
2026-007S	Residences at the Carver	Miami-Dade	L	Kenneth Naylor	Carver Theater Development, LLC	HR	F	71	3,000,000	Y	Y	N	Y	N	N	N	N	1	10	2	A	Y	Y	3
2026-008S	Gallery at Cross Creek	Broward	L	Alberto Milo, Jr.	Gallery at Cross Creek Developer, LLC	HR	F	279	18,000,000	Y	Y	N	Y	N	N	N	N	1	10	2	A	Y	Y	29
2026-009S	Rainbow Village II	Miami-Dade	L	Matthew A. Rieger	RGC Phase II Developer, LLC	HR	F	280	17,000,000	Y	Y	Y	Y	Y	N	N	N	1	10	2	A	Y	Y	31
2026-010S	Pinellas Heights II	Pinellas	L	Neil Brickfield	Newstar Development, LLC; PCHA Development, LLC	MR 5/6	E, Non-ALF	132	12,540,000	Y	N	N	N	Y	Y	N	N	1	10	2	C	Y	Y	14
2026-011BS	350 Overtown	Miami-Dade	L	Sydne Garchik	MRK Partners Inc.; SFCLT 350 Dev MM LLC	HR	F	173	8,000,000	Y	N	Y	Y	N	N	N	N	1	5	1	B	Y	Y	45
2026-012BS	Village Oaks Apartments	Escambia	M	C. Hunter Nelson	ECG Village Oaks Developer, LLC	G	F	186	13,500,000	Y	N	N	Y	N	N	N	N	1	10	2	B	Y	Y	15
2026-013S	Skyway Flats	Pinellas	L	C. Hunter Nelson	ECG Pinellas Developer, LLC	MR 5/6	F	174	8,300,000	Y	N	Y	Y	N	N	N	N	1	10	1	B	Y	Y	32
2026-014S	DeSoto Apartments II	Manatee	M	J. David Heller	DeSoto Apartments II Developer LLC; WCZ Development LLC	MR 4	F	200	13,500,000	Y	N	N	Y	N	N	N	N	1	10	2	B	Y	Y	11
2026-015BS	Merlin Crossing	Duval	L	Jeffrey J. Woda	The Woda Group, Inc.	MR 5/6	F	112	12,439,477	Y	N	Y	Y	N	N	N	N	1	10	2	C	Y	Y	4
2026-016BS	FBC Affordable P1B	Brevard	M	Daniel Coakley	FBC Affordable P1B Developer, LLC	MR 5/6	F	167	12,200,000	Y	N	Y	Y	N	N	N	N	1	10	2	B	Y	Y	24
2026-017BS	Aura Living	Miami-Dade	L	Jose J Figueroa	Aura Developer, LLC	HR	F	210	6,000,000	Y	N	Y	Y	N	N	N	Y	1	10	1	A	Y	Y	43
2026-018BS	Lofts at Trumbo	Monroe	S	James R. Hoover	TVC Development, Inc.	MR 4	F	150	16,315,000	Y	Y	N	Y	N	N	Y	N	1	10	1	C	Y	Y	6

RFA 2025-213 - All Applications

Application Number	Name of Development	County	County Size	Name of Authorized Principal Representative	Name of Developer	Development Type	Demo	Units	Total Live Local SAIL Request Amount (SAIL plus ELI)	Eligible For Funding?	Publicly Owned Lands Development Goal	Youth Aging Out of Foster Care Goal	Urban In-Fill Development	Mixed-Use Development	Elderly, Mixed-Use Development	Florida Keys Area Goal	Permit Ready Goal	Priority Level	Total Points	Tier Level	A/B/C Leveraging	Proximity Funding Preference	Florida Job Creation Preference	Lottery Number
2026-019S	Liberty Square Phase Six	Miami-Dade	L	Alberto Milo, Jr.	Liberty Square Phase Six Developer, LLC	HR	F	288	3,000,000	Y	Y	N	Y	N	N	N	N	1	10	2	A	Y	Y	9
2026-020BS	Santa Cruz Isles	Miami-Dade	L	Lewis V Swezy	RS Development Corp	HR	F	270	13,350,000	Y	N	N	Y	N	N	N	N	1	10	1	B	Y	Y	38
2026-021BS	Pinnacle at Southland	Miami-Dade	L	David O. Deutch	Pinnacle Communities, LLC	HR	E, Non-ALF	100	6,117,000	Y	N	N	N	Y	Y	N	N	1	10	1	C	Y	Y	34
2026-022BS	CGPA Parcel A	Orange	L	Daniel Coakley	CGPA Parcel A Developer, LLC	HR	F	236	15,500,000	Y	Y	Y	Y	N	N	N	N	1	10	2	A	Y	Y	37
2026-023BS	Pinnacle at Audubon Place	Broward	L	David O. Deutch	Pinnacle Communities II, LLC	HR	E, Non-ALF	116	10,838,900	Y	N	N	N	Y	Y	N	N	1	10	2	B	Y	Y	36
2026-024BS	GHA Build First Site	Alachua	M	Renee Sandell	Paces Preservation Partners, LLC; GHA Development, LLC	MR 4	F	72	4,100,000	Y	N	Y	Y	N	N	N	N	1	10	2	A	Y	Y	26
2026-025BS	The View at Central City	Broward	L	J. David Heller	View at Central City Developer LLC ; WCZ Development LLC	HR	E, Non-ALF	120	10,500,000	Y	N	N	N	Y	Y	N	N	1	10	2	B	Y	Y	25
2026-026S	Claude Pepper II	Miami-Dade	L	David Burstyn	Redwood CP Developer II, LLC	HR	F	255	12,000,000	Y	Y	Y	Y	N	N	N	N	1	10	1	A	Y	Y	10
2026-027BS	Annie Coleman 14	Miami-Dade	L	David Burstyn	Magasi Redwood AC Developer I, LLC	HR	F	181	3,000,000	Y	Y	Y	Y	N	N	N	N	1	10	2	A	Y	Y	27
2026-028BS	Pinnacle on Sixth	Palm Beach	L	David O. Deutch	Pinnacle Communities II, LLC	MR 5/6	F	92	8,400,000	Y	N	Y	Y	N	N	N	N	1	10	2	C	Y	Y	39
2026-029BS	Notre Communaute	Miami-Dade	L	Stephanie Berman	C4Dev Notre Communaute, LLC	HR	F	144	10,500,000	Y	N	Y	Y	Y	N	N	N	1	10	2	B	Y	Y	41
2026-030BS	Poinciana Terrace	Hillsborough	L	Kenneth Naylor	Poinciana Terrace Development, LLC	MR 5/6	F	120	10,135,000	Y	N	N	Y	N	N	N	N	1	10	2	B	Y	Y	18
2026-031S	Metro Grande I	Miami-Dade	L	Mara S. Mades	Cornerstone Group Partners, LLC	HR	F	108	3,000,000	Y	Y	Y	Y	N	N	N	N	1	10	2	A	Y	Y	30
2026-032S	Mama Hattie's House	Miami-Dade	L	Matthew A. Rieger	HTG Girl Power Developer, LLC	HR	F	88	3,000,000	Y	Y	Y	Y	Y	N	N	N	2	10	2	A	Y	Y	40
2026-033BS	RPV Parcel C	Hillsborough	L	Daniel Coakley	RPV Parcel C Developer, LLC	HR	F	205	14,400,000	Y	Y	Y	Y	N	N	N	N	1	10	2	A	Y	Y	19
2026-034S	Divers Cove	Monroe	S	Brian K Swanton	Gorman & Company, LLC	G	F	79	14,860,000	Y	N	N	Y	N	N	Y	N	1	10	2	C	Y	Y	35
2026-035BS	Bromley Square	Duval	L	Jonathan L. Wolf	Bromley Square Developer, LLC	G	F	120	11,400,000	Y	N	N	Y	N	N	N	N	1	10	2	C	Y	Y	46
2026-036S	JR Tower	Pinellas	L	Scott Macdonald	Blue JRT Developer, LLC	HR	F	150	13,500,000	Y	N	Y	Y	N	N	N	N	1	10	2	B	Y	Y	21
2026-037BS	Jones on Hogan	Duval	L	Salvatore G. Leone	AGLL Development, LLC	MR 4	F	132	11,000,000	Y	N	N	Y	N	N	N	N	1	10	2	C	Y	Y	23

RFA 2025-213 - All Applications

Application Number	Name of Development	County	County Size	Name of Authorized Principal Representative	Name of Developer	Development Type	Demo	Units	Total Live Local SAIL Request Amount (SAIL plus ELI)	Eligible For Funding?	Publicly Owned Lands Development Goal	Youth Aging Out of Foster Care Goal	Urban In-Fill Development	Mixed-Use Development	Elderly, Mixed-Use Development	Florida Keys Area Goal	Permit Ready Goal	Priority Level	Total Points	Tier Level	A/B/C Leveraging	Proximity Funding Preference	Florida Job Creation Preference	Lottery Number
2026-038S	Homestead Gardens Phase II	Miami-Dade	L	Mario Procida	DBC PROCIDA II LLC	G	F	88	8,360,000	Y	Y	Y	Y	N	N	N	N	1	5	2	C	Y	Y	1
2026-041BS	Arbors at Naranja	Miami-Dade	L	Daniel F. Acosta	ACRUVA Community Developers, LLC	HR	E, Non-ALF	120	9,250,000	Y	N	N	N	Y	Y	N	N	1	10	2	B	Y	Y	13
2026-042S	Orange on 14th Street	Manatee	M	Brian K Swanton	Gorman & Company, LLC	MR 4	F	174	10,788,000	Y	N	N	Y	N	N	N	N	1	10	1	C	Y	Y	17
2026-043S	Edison Towers II	Miami-Dade	L	Carol Gardner	TEDC Affordable Communities Inc.	HR	E, Non-ALF	96	9,120,000	Y	N	N	N	Y	Y	N	N	1	10	2	C	Y	Y	22
2026-047BS	David M. Pemberton Senior Residences	Miami-Dade	L	Willie Logan	Opa-locka Community Development Corporation, Inc. d/b/a Ten North Group	HR	E, Non-ALF	133	9,000,000	Y	N	N	N	Y	Y	N	N	1	10	2	A	Y	Y	44

Ineligible Applications

2026-003S	Ekos Melrose Manors	Broward	L	Christopher L. Shear	MHP Melrose Developer, LLC	HR	E, Non-ALF	120	11,169,600	N	N	N	N	Y	Y	N	N	1	10	2	B	Y	Y	5
2026-039S	Ekos Paseo Al Mar	Hillsborough	L	Christopher L. Shear	MHP Hillsborough I Developer, LLC	MR 5/6	F	230	17,000,000	N	N	N	N	N	N	N	N	1	10	2	B	Y	Y	16
2026-040BS	Bellevue Manor	Pinellas	L	Patrick E Law	ARD Bellevue Manor, LLC; New South Residential, LLC	MR 5/6	F	84	4,422,000	N	N	Y	Y	N	N	N	N	1	10	1	A	Y	Y	12
2026-044S	West Grove Phase Two	Miami-Dade	L	Kareem Brantley	Integral Florida LLC	HR	F	149	4,500,000	N	Y	N	Y	N	N	N	N	1	10	1	A	Y	Y	28
2026-045S	Uptown Center	Miami-Dade	L	Kareem T Brantley	Integral Florida LLC	HR	F	179	12,000,000	N	N	N	Y	Y	N	N	N	1	10	2	A	Y	Y	7
2026-046BS	Ashley East Tampa	Hillsborough	L	Kareem T Brantley	Integral Florida LLC	MR 5/6	F	118	7,800,000	N	Y	N	Y	N	N	N	N	1	10	2	B	N	Y	42

RFA 2025-213 – Review Committee Recommendations

Total Live Local SAIL Funding	100,000,000
Total Live Local SAIL Allocated	99,936,777
Total Live Local SAIL Remaining	63,223

To ensure an appropriate amount of funding is available for future RFAs that will fund additional projects meeting the criteria outlined in s. 420.50871(1)(a)-(d), the Corporation will award a maximum of \$62,000,000 in Live Local SAIL to Applications that do not qualify for any of the following: the Public Lands Development Goal; the Youth Aging Out of Foster Care Goal; or the Elderly Mixed-Use Development Goal.

Total Live Local SAIL Funding allocated to Developments that do not qualify for these goals:	\$ 18,788,777.00
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Application Number	Name of Development	County	County Size	Authorized Principal Representative	Name of Developer	Demo	Units	Total Live Local SAIL Request Amount (SAIL plus EU)	Publicly Owned Lands Development Goal	Youth Aging Out of Foster Care Goal	Urban In-Fill Development	Mixed-Use Development	Elderly, Mixed-Use Development	Florida Keys Area Goal	Permit Ready Goal	Priority Level	Total Points	Tier Level	A/B/C Leveraging	Proximity Funding Preference	Florida Job Creation Preference	Lottery Number
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Goal to fund one Family Development that qualifies for the Public Lands Development Goal

2026-026S	Claude Pepper II	Miami-Dade	L	David Burstyn	Redwood CP Developer II, LLC	F	255	12,000,000	Y	Y	Y	N	N	N	N	1	10	1	A	Y	Y	10
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Goal to fund one Family Development that qualifies for the Youth Aging Out of Foster Care Goal

MET ABOVE

Goal to fund at least one Family Development that qualifes for the Urban Infill Development Goal, if not met above

MET ABOVE

Goal to fund one Application that qualifies for the Elderly, Mixed-Use Development Goal

2026-021BS	Pinnacle at Southland	Miami-Dade	L	David O. Deutch	Pinnacle Communities, LLC	E, Non-ALF	100	6,117,000	N	N	N	Y	Y	N	N	1	10	1	C	Y	Y	34
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Goal to fund one Priority 1 Family Development that qualifies for the Florida Keys Area Goal

2026-018BS	Lofts at Trumbo	Monroe	S	James R. Hoover	TVC Development, Inc.	F	150	16,315,000	Y	N	Y	N	N	Y	N	1	10	1	C	Y	Y	6
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Goal to fund one Priority 1 Application that qualifies for the Permit Ready Development Goal

2026-017BS	Aura Living	Miami-Dade	L	Jose J Figueroa	Aura Developer, LLC	F	210	6,000,000	N	Y	Y	N	N	N	Y	1	10	1	A	Y	Y	43
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Goal to fund at least one Family Application that qualifes for the Mixed-Use Development Goal, if not met above

MET ABOVE

Remaining Funding

2026-001S	Hollywood Vista	Broward	L	Matthew A. Rieger	HTG Vista Developer, LLC	F	118	7,316,000	Y	Y	Y	Y	N	N	N	1	10	1	B	Y	Y	8
2026-013S	Skyway Flats	Pinellas	L	C. Hunter Nelson	ECG Pinellas Developer, LLC	F	174	8,300,000	N	Y	Y	N	N	N	N	1	10	1	B	Y	Y	32
2026-042S	Orange on 14th Street	Manatee	M	Brian K Swanton	Gorman & Company, LLC	F	174	10,788,000	N	N	Y	N	N	N	N	1	10	1	C	Y	Y	17
2026-033BS	RPV Parcel C	Hillsborough	L	Daniel Coakley	RPV Parcel C Developer, LLC	F	205	14,400,000	Y	Y	Y	N	N	N	N	1	10	2	A	Y	Y	19

RFA 2025-213 – Review Committee Recommendations

Application Number	Name of Development	County	County Size	Authorized Principal Representative	Name of Developer	Demo	Units	Total Live Local SAIL Request Amount (SAIL plus ELI)	Publicly Owned Lands Development Goal	Youth Aging Out of Foster Care Goal	Urban In-Fill Development	Mixed-Use Development	Elderly, Mixed-Use Development	Florida Keys Area Goal	Permit Ready Goal	Priority Level	Total Points	Tier Level	A/B/C Leveraging	Proximity Funding Preference	Florida Job Creation Preference	Lottery Number
2026-006S	Ekos at Bayonet Point III	Pasco	M	Christopher L. Shear	MHP Pasco III Developer, LLC	F	126	8,000,777	N	N	Y	N	N	N	N	1	10	2	A	Y	Y	20
2026-024BS	GHA Build First Site	Alachua	M	Renee Sandell	Paces Preservation Partners, LLC; GHA Development, LLC	F	72	4,100,000	N	Y	Y	N	N	N	N	1	10	2	A	Y	Y	26
2026-002BS	Twin Lakes Estates - Phase III	Polk	L	Matthew A. Rieger	HTG Twin Lakes III Developer, LLC; Polk County Housing Developers, Inc.	F	92	6,600,000	Y	Y	Y	Y	N	N	N	1	10	2	B	Y	Y	33



REV. HENRY NEVIN – FOUNDER

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September 4, 2025

Via E-mail: Melissa.Levy@floridahousing.org

Melissa Levy
Managing Director, Multi-Family Programs
Florida Housing Finance Corporation
227 North Bronough Street, Suite 5000
Tallahassee, Florida 32301

Subject: Towne Villas I & II – RFA 2024-214 Voluntary Return of Funding

Dear Ms. Levy,

After careful consideration, St. John Community Development Corporation has decided to voluntarily and permanently return the funding awarded under RFA 2024-214 for the Towne Villas I and Towne Villas II development.

As outlined in our prior correspondence, circumstances beyond our control have made it impossible to advance the two-phase structure required under the RFA. Specifically, the phase two property owner has withdrawn from the contemplated sale and introduced acquisition and LURA release conditions that render the project financially infeasible for our organization. Additionally, the extended costs and compressed timeline for meeting loan commitment conditions cannot be satisfied under these terms.

As a nonprofit committed to integrity and the responsible stewardship of resources, we believe it is in the best interest of both Florida Housing Finance Corporation and our community to return these funds for reallocation to other viable projects that can promptly deliver affordable housing.

This decision is final and represents a permanent relinquishment of the award. We remain committed to future opportunities with FHFC and will continue to pursue developments that align with our mission and the state's affordable housing goals.

Thank you for your partnership and understanding. Please confirm receipt of this letter and advise of any administrative steps we must take to complete the return of funds.

Sincerely,

A handwritten signature in blue ink, appearing to read 'E. Haynes', followed by a horizontal flourish.

Eric L. Haynes
Development Director

REQUEST FOR QUALIFICATIONS (RFQ) 2025-04

**CREDIT UNDERWRITING, CONSTRUCTION AND PERMANENT LOAN
SERVICING, AND COMPLIANCE MONITORING SERVICES**

for

FLORIDA HOUSING FINANCE CORPORATION

August 13, 2025

SECTION ONE

INTRODUCTION

Florida Housing Finance Corporation (“Florida Housing”) is soliciting competitive, sealed responses from qualified firms to provide Credit Underwriting, Construction and Permanent Loan Servicing, and Compliance Monitoring services in accordance with the terms and conditions set forth in this Request for Qualifications (RFQ), and any other term and condition in any contract subsequently awarded. Respondents will be selected and determined through Florida Housing’s review of each response, considering the factors identified in this RFQ. Florida Housing expects to select one or more Respondents that propose to provide all of the services specified in this RFQ.

SECTION TWO

DEFINITIONS

For purposes of this document, the following terms will be defined as follows:

- “Acceptable Depository Account” An account within any Federal Reserve Bank, Federal Home Loan Bank or any other depository institution wherein the account is insured by the Federal Deposit Insurance Corporation, National Credit Union Share Insurance Fund or such other governmental insurer or guarantor as may be acceptable to Florida Housing and, where applicable, the mortgagor(s). If the account balance exceeds the maximum insurable limit, the depository institution must a) fully secure any excess by a collateral pledge of Governmental Obligations or b) transfer an amount to another Acceptable Depository Account such that the account balances do not exceed the maximum insurable limits. The account shall be interest-bearing, unless the Developer submits a written request to the Servicer to the contrary. Funds must be withdrawable on demand, without prior notice or early withdrawal penalty. Accounts that limit the number of withdrawals may be maintained; however, the Servicer is responsible for any resulting fees or penalties.
- "Applicant" Any person or legal entity of the type and with the management and ownership structure described herein that is seeking a loan or funding from the Corporation by submitting an application or responding to a competitive solicitation pursuant to Rule Ch. 67-60, F.A.C., for one or more of the Corporation’s programs. For purposes of Rules 67-48.0105, 67-48.0205 and 67-48.031, F.A.C., Applicant also includes any assigns or successors in interest of the Applicant. Unless otherwise stated in a competitive solicitation, as used herein, a ‘legal entity’ means a legally formed corporation, limited partnership or limited liability

	company with a management and ownership structure that complies with the applicable rule under which it applied (67-21, F.A.C. and/or 67-48, F.A.C.)
“Board”	The Board of Directors of Florida Housing Finance Corporation.
“Borrower”	An Applicant receiving funds in the form of a loan and obligated to repay the loan, usually with interest. A Borrower is called a mortgagor when the loan is secured by real estate.
“Business Continuity Plan”	The Respondent’s plan for providing for the continuation and recovery of critical business functions in the event of any unplanned business interruption.
“Carryover”	The provision under Section 42 of the IRC and Rule 67-48.028, F.A.C., that allows a development to receive a Housing Credit Allocation in a given calendar year and be placed in service by the close of a second calendar year following the calendar year in which the allocation is made.
“CDBG-DR”	Community Development Block Grant Disaster Recovery Program.
“Committee”	The review committee composed only of employees of Florida Housing that is established pursuant to Rule 67-49.007, F.A.C.
“Compliance Monitoring”	The activities, reviews, and inspections conducted to assess and verify that properties meet programmatic, statutory, regulatory and contractual requirements, including but not limited to physical inspections, file reviews, and reporting.
“Construction Loan”	The financing that is made to an Applicant for construction of a Development.
“Contractor”	A person or entity providing the professional services described in Section Four of this RFQ.
“Days”	Calendar days, unless otherwise specified.
“Demonstration Loan”	A loan to provide affordable housing, after Florida Housing has identified the need within a targeted population, as approved by the Board.

“Desk Review”	An off-site review of files and other documents that have been sent to the Servicer.
“Developer”	An individual, association, corporation, joint venturer, or partnership which possesses the requisite skill, experience, and credit worthiness to successfully produce affordable housing as required in the application.
“Development”	A project as defined in s. 420.503, F.S.
“Draw Request”	The request that a Borrower submits for disbursement of funds.
“Effective Date”	The date the last party signs the contract that is awarded as a result of this RFQ.
“ELI”	Extremely Low Income
“Eligible Depository”	Any Federal Reserve Bank, Federal Home Loan Bank or any other depository institution that has its accounts insured by the Federal Deposit Insurance Corporation, the National Credit Union Share Insurance Fund or other such governmental insurer or guarantor as may be acceptable to Florida Housing and, where applicable, the mortgagor(s); and is rated as “well capitalized” by its applicable federal or state regulator or, if not rated by a federal or state regulator, satisfies the capital requirements that would apply for categorization as “well capitalized” under federal or state regulations; and [For depository institutions with assets \$20 billion or more] The institution must have a financial rating that meets or exceeds only one (1) of the following criteria if rated only by S&P or only by Moody’s; however, if rated by both, then it must satisfy both items (a) and (b) below: (a) a short-term issuer rating by S&P of “A-2” and a long-term issuer rating of “BBB” by S&P; (b) a short-term bank deposit rating by Moody’s of “P-3” and a long-term bank deposit rating of “Baa2” by Moody’s; or (c) satisfies any other standard determined by Florida Housing, provided that such other standard is comparable to the rating requirements set forth above.

[For depository institution with assets of less than \$20 billion]

The institution must meet (a), (b) or (c) above or it must meet or exceed one (1) of the following criteria:

(d) a financial rating of 175 by IDC Financial Publishing, Inc.;

(e) a financial rating of C+ by Kroll Bond Rating Agency, Inc.

When determining the eligibility of a depository institution, the Servicer must use the most recent financial ratings and must subsequently re-check these ratings quarterly. If a depository no longer satisfies the requirements for an Eligible Depository, the Servicer must transfer the account to an Eligible Depository within 30 days after learning that the depository institution is unacceptable.

“Energy Star”

A joint program of the U.S. Environmental Protection Agency and the U.S. Department of Energy, which certifies products and buildings that meet requirements for energy efficiency.

“Enterprise Green Communities”

A green building certification program offered by Enterprise Community Partners, whose criteria is a standard for the design, construction, and operation of healthy, energy efficient, and environmentally responsible affordable housing.

“EUA”

Extended Use Agreement or Extended Low Income Housing Agreement.

“FHFC Insurance Guide”

Florida Housing Finance Corporation Insurance Guide, as amended from time to time.

“Fiscal Agent”

Any bank, national banking association, co-Agent and their successors and assignees appointed under any Funding Loan Agreement or Supplemental Funding Loan Agreement and having the duties, responsibilities and rights identified in said Funding Loan Agreement or Supplemental Funding Loan Agreement.

“Florida Green Building Coalition”
or “FGBC”

A green building certification program through which buildings are evaluated by third party verifiers to achieve a rating of bronze, silver, gold or platinum. Residential

	buildings can be certified by the FGBC Green Home Standard or the Hi-Rise Residential Standard.
“Florida Housing” or “FHFC”	Florida Housing Finance Corporation, a public corporation and public body corporate and politic created by s. 420.504, F.S.
“Florida Housing Locator Services” or “Housing Locator”	A web-based online affordable rental housing search engine and landlord registry owned by the Corporation that assists the public to search for available rental units registered in the Locator’s database. Since 2009, the Corporation has required its financed developments to be registered in the Locator’s database and updated regularly.
“Governmental Obligations”	Any part of an obligation evidenced by any bond, note, debenture, or other evidence of indebtedness issued by any governmental unit specified in section 3(a)(2) of the Securities Act of 1933.
“Guarantor”	An individual, institution, or other entity that guarantees to repay a debt if the Borrower defaults.
“HAP”	The Florida Homeowner Assistance Program that Florida Housing administers pursuant to ss. 420.507 and 420.5088, F.S. and Rule Ch. 67-50, F.A.C.
“HOME”	The HOME Investment Partnerships program which includes the Homeownership Loan Program, the Homeownership Pool Program and the Multifamily Rental Program, pursuant to the United States Department of Housing and Urban Development Regulations, 24 CFR Part 92, as amended. Florida Housing administers this program pursuant to ss. 420.507 and 420.5089, F.S. and Rule Ch. 67-48, 67-50, 67-53 and 67-57, F.A.C.
“Home Energy Rater”	A state-certified energy rater who can perform the inspections and testing necessary for the Energy Star Qualified Homes Florida Building Option Package. Home Energy Raters can also perform tests and inspections for energy-related categories of LEED, FGBC, Enterprise Green Communities, and NGBS green building certification programs.
“Homeownership Pool Program” or “HOP”	The Homeownership Pool Program administered by Florida Housing and defined in Rule Ch. 67-57, F.A.C.

“Housing Credit Program”	The Housing Credit program that Florida Housing administers pursuant to ss. 420.507 and 420.5099, F.S., Rule Ch. 67-21, 67-48 and 67-53, F.A.C., and Section 42 of the Internal Revenue Code (IRC).
“HUD”	The United States Department of Housing and Urban Development.
“LEED”	Leadership in Energy and Environmental Design is a green building certification through which buildings are evaluated by third party verifiers to achieve a rating of certified, silver, gold or platinum. LEED is a program of the U.S. Green Building Council.
“Lender”	The entity other than Florida Housing that provides a mortgage loan.
“Life-Threatening”	A defect severity category defined in the National Standards for the Physical Inspection of Real Estate (NSPIRE). The Life-Threatening category includes deficiencies that, if evident in the home or on the property, present a high risk of death to the resident.
“Link”	The Link to Permanent Housing Strategy (Link) enhances the ability of extremely low-income (ELI) households with special needs to access and retain affordable rental housing in their communities. Florida Housing requires Applicants to provide a specified percentage of a Development’s ELI Set-Aside units for special needs households receiving community based supportive services who are referred by a designated supportive services agency in the community where the Development is located.
“Low”	A defect severity category defined in NSPIRE that includes deficiencies critical to habitability but not presenting a substantive health or safety risk to the resident.
“LURA”	Land Use Restriction Agreement
“Management Company”	A firm selected by the Development’s owner to oversee the operation and management of the Development and whose selection is approved by Florida Housing.
“MMRB”	Multifamily Mortgage Revenue Bond program that Florida Housing Administers pursuant to 420.507 and 420.509, F.S. and Rule Ch. 67-21 and 67-53, F.A.C.

“Moderate”	A defect severity category defined in NSPIRE that includes deficiencies that, if evident in the home or on the property, present a moderate risk of an adverse medical event requiring a healthcare visit; cause temporary harm; or if left untreated, cause or worsen a chronic condition that may have long-lasting adverse health effects; or that the physical security or safety of a resident or their property could be compromised.
“NGBS”	National Green Building Standard. NGBS is an American National Standards Institute-approved, third-party certified, residential building standard that provides a flexible and affordable way to verify your green construction practices in your single-family, multifamily, remodeling and land development projects. The NGBS Green certification demonstrates high-performance building in six areas: Lot Design and Development, Resource Efficiency, Water Efficiency, Energy Efficiency, Indoor Environmental Quality, and Building Operation & Maintenance.
“NHTF”	National Housing Trust Fund.
“NSPIRE”	National Standards for the Physical Inspection of Real Estate.
“Permanent Loan”	A long-term mortgage that typically follows construction or bridge financing.
“PLP”	The Predevelopment Loan Program that Florida Housing administers pursuant to ss. 420.507 and 420.526, F.S. and Rule 67-38, F.A.C.
“Red Flag Plan”	Respondent’s plan regarding identity theft prevention program, to include how the Respondent will identify, detect, and respond to any pattern, practice or specific account or record activity or any other warning sign (“red flag”) that indicates possible identity theft. This plan should indicate the Respondent’s compliance with the federal Red Flags Rule, which implements Section 114 of the Fair and Accurate Credit Transactions Act of 2003 (16 CFR part 681), and as amended by the Red Flag Program Clarification Act of 2010 (15 U.S.C. 1681m(e)(4)).

“Respondent”	Any person or entity who has the capability in all respects to perform fully the requirements contained in this RFQ and submits a response to this RFQ.
“Response”	The written submission by a Respondent to this RFQ.
“RFQ”	This RFQ, including all exhibits referenced in this document and all other documents incorporated by reference.
“SAIL”	The State Apartment Incentive Loan program that Florida Housing administers pursuant to ss. 420.507 and 420.5087, F.S. and Rule Ch. 67-48 and 67-53, F.A.C.
“Servicer”	The Respondent(s) selected to perform the services required by this RFQ.
“Severe”	A defect severity category defined in NSPIRE that includes deficiencies that, if evident in the home or on the property, present a high risk of permanent disability, or serious injury or illness, to a resident; or the physical security or safety of a resident or their property would be seriously compromised.
"Smaller Developments for Persons with Developmental Disabilities”	The competitive grant program administered by Florida Housing to provide Persons with Developmental Disabilities funding for the new construction or renovation of supportive housing for Persons with Intellectual/Developmental Disabilities pursuant to Rule 67-60, F.A.C.
“Trustee”	Any bank, trust company, national banking association, co-Trustee and their successors and assignees appointed under any Trust Indenture or Supplemental Trust Indenture and having the duties, responsibilities and rights identified in said Trust Indenture or Supplemental Trust Indenture.
“Website”	The Florida Housing Finance Corporation website, the URL of which is www.floridahousing.org .

SECTION THREE

PROCEDURES AND PROVISIONS

A. Respondents will submit their Response to:

<https://www.floridahousing.org/legal/procurements/RFQ-2025-04-Document-Upload>

Florida Housing must receive the entire Response on or before 2:00 p.m., Eastern Time, on September 16, 2025, as Responses will be opened at that time. Any Responses received after

the deadline will be considered non-responsive. One complete copy of the response in PDF format is preferred; the PDF must be text-searchable and not password-protected, unless specified otherwise in Section Six below, and the file name ought to contain a reference to both the solicitation number (RFQ 2025-04) and the name of the Respondent. Please note that the site will ask for the Respondent's contact information and the solicitation number prior to being able to upload the Response. Florida Housing will not accept a mailed or faxed Response.

B. This RFQ does not commit Florida Housing to award a contract to any Respondent or to pay any costs incurred in the preparation or submission of a Response.

C. All services under the contract awarded are to be performed solely by the Contractor, unless subcontracted or assigned with the prior written approval and consent of Florida Housing.

D. Florida Housing reserves the right to:

1. Waive minor deficiencies and informalities;
2. Accept or reject any or all Responses received as a result of this RFQ;
3. Obtain information concerning any or all Respondents from any source;
4. Request an oral interview before the Board from any or all Respondents;
5. Select for contract negotiation or for award a Response other than (or in addition to) that with the highest score in order to serve the best interests of Florida Housing and the public; and
6. Negotiate with the successful Respondent(s) with respect to any additional terms or conditions of the contract.

E. Any interested party may submit any question regarding this RFQ in writing via e-mail to the Contract Administrator at Contract.Admin@floridahousing.org. All questions must be submitted no later than 2:00 p.m., Eastern Time, on August 26, 2025. Phone calls will not be accepted. Florida Housing expects to respond to all questions in writing by 5:00 p.m., Eastern Time, on September 2, 2025. Florida Housing will post a copy of all questions received and the corresponding answers on Florida Housing's website at:

<http://www.floridahousing.org/legal/procurements/request-for-qualifications>.

Only written responses or statements from the Contract Administrator that are posted on our website will bind Florida Housing. No other means of communication, whether oral or written, may be construed as an official response or statement from Florida Housing.

F. Between the release of the solicitation and the end of the 72-hour period following the posting of the notice of intended award, excluding Saturdays, Sundays, and state holidays, respondents to this solicitation or persons acting on their behalf may not contact any member of

Florida Housing's Board of Directors or any Florida Housing employee concerning any aspect of this solicitation, except in writing to the Contract Administrator. Violation of this provision may be grounds for rejecting a response.

G. Any person who wishes to protest the specifications of this RFQ must file a protest in compliance with s. 120.57(3), F.S., and Rule Ch. 28-110, F.A.C. Failure to file a protest within the time prescribed in Section 120.57(3), F.S., will constitute a waiver of proceedings under Ch. 120, F.S.

H. The term of the contract will be for five years, subject to satisfactory performance at the sole discretion of Florida Housing. If the parties mutually agree in writing, the contract may be renewed once for an additional three years.

I. Florida Housing is not required to use the services of any selected Contractor or to assign any work to such provider, and may terminate the contract with any selected Contractor without cause and without penalty.

J. Pursuant to Rule 67-49.004, Fla. Admin. Code, Florida Housing may modify the terms of the RFQ at any point prior to the due date for Responses. A notice of such modification will be posted on Florida Housing's Website. Any Respondent will have at least seven days from the date of the posting of the notice of the modification to submit or modify its Response.

K. The terms of this RFQ, and any modifications thereto, will be incorporated into any contract offered as a result of this RFQ. Failure of a successful Respondent to accept these obligations in the final contract may result in cancellation of the award and selection of an alternate Respondent.

L. By submitting a Response to this RFQ, the Respondent agrees that any resulting contracts or agreements (and any attachments, exhibits, and amendments) may be executed and delivered by electronic signatures. As used herein, the term "electronic signatures" shall have the meaning in s. 668.50, F.S.

SECTION FOUR

SCOPE OF SERVICES

I. Credit Underwriting

A. The Servicer will provide Florida Housing with a credit underwriting analysis of the Development or proposed Developments, as requested by Florida Housing. The credit underwriting analysis of the Development will include a recommendation as to whether the requested loan amount, grant amount and/or housing credit allocation is adequate and the amount necessary for the financial feasibility and viability of each Development. The Servicer will meet with Florida Housing and/or the Applicant of each Development as requested by Florida Housing. Florida Housing may also request a credit underwriting analysis regarding changes of ownership, re-financings, refunding, or other financing or restructuring requests that Florida Housing may receive.

B. Credit underwriting for any Florida Housing program, including but not limited to those set forth below, must comply with Ch. 420, Part V, F.S., and the following Rules, as may be amended from time to time, for each Florida Housing program set forth in the Florida Administrative Code, if applicable, as may be amended from time to time and any applicable federal statutes, regulations, and program guidance incorporated therein:

1. CDBG-DR
2. Demonstration Loans
3. HOME Multifamily Rental Program – Ch. 67-48, F.A.C.
4. Homeownership Loan Program – Ch. 67-50, F.A.C.
 - a. Home Investment Partnerships Program (HOME)
 - b. Homeownership Assistance Program (HAP)
5. Homeownership Pool Program – Ch. 67-57, F.A.C.
6. Housing Credit Program – Ch. 67-48 and 67-21, F.A.C.
7. Multifamily Mortgage Revenue Bonds Program – Ch. 67-21, F.A.C.
8. National Housing Trust Fund (NHTF)
9. Predevelopment Loan Program – Ch. 67-38, F.A.C.
10. State Apartment Incentive Loan Program – Ch. 67-48, F.A.C.

C. The process to be used by the Servicer to underwrite all Developments financed by Florida Housing will address, at a minimum, the factors outlined in items 1 through 25 below (as applicable according to the program):

1. With respect to the Development team, the Servicer will:
 - a. Review, verify, and document executed certification forms and experience of Developers, general contractors, management companies, and assisted living facility service providers confirming that the minimum requirements of the application have been met.
 - b. Review Developments constructed and/or currently owned by the Applicant to determine that Developments are in good financial standing and, where applicable, in compliance with applicable statutes, rules, and regulations. If it is identified by the Servicer that the Applicant's principals have other loans with Florida Housing, or other lenders, that

are out of compliance, in default or non-performing as determined by Florida Housing, the loan recommendation will include a summary of the issues.

c. Verify and document that the Certificate of Status for the applicant entity through the Florida Department of State is current during credit underwriting.

d. Evaluate the Applicant's, Guarantor's, and general contractor's ability to complete a Development, based on their financial capability and stability as well as contingent liabilities for the Developer and Guarantors.

e. Verify and document that the general contractor has a valid Florida license.

f. Evaluate financial capacity and stability of any syndicators and credit enhancers or bond purchasers. This will include the review of the commitments from credit enhancers or bond purchasers, and housing tax credit syndicators.

g. Perform a credit analysis, if applicable in the program rules, for principals, Guarantors, general contractor, Applicant and general partner (i.e., credit reports, bank references, trade references, written financial statements analysis, tax returns, bank deposit verification, etc.).

h. Review, verify and document executed certification forms and experience of general contractors and service providers for assisted living facilities.

i. Review the cost estimates and certifications from the Applicant's architect, engineer, or other professionals.

j. Verify and document that the architect/engineer has a valid Florida license and carries Errors and Omissions insurance in an amount required pursuant to the FHFC Insurance Guide.

k. Review the management agreement between the Management Company and the Applicant, determine that the Development will be managed as an affordable housing Development, and obtain a completely executed agreement prior to or at loan closing.

l. Verify and document the adequacy of the general contractor and Borrower's insurance policies, as applicable, pursuant to the FHFC Insurance Guide.

m. Review the general contractor agreement between the general contractor and the Applicant for compliance to the applicable Rule and/or RFA restrictions as well as any restrictions related to subcontractors.

2. With respect to the location of the Development, the Servicer will:

a. Perform a physical site inspection and neighborhood analysis, to include, but not be limited to:

- i. Proximity to employment, job centers, transportation, shopping, schools, day care centers, hospitals, health clinics, parks, senior centers, and any other applicable service establishment; and
 - ii. Type of neighborhood; including its appearance, growth or decline, and possible intrusion of commercial and industrial uses.
 - b. Perform a site analysis to include the Development's:
 - i. Accessibility-ingress, egress, utilities, infrastructure, and availability;
 - ii. Topography and other site conditions, to include a review of the Soils Test Report, if necessary;
 - iii. Zoning and land use requirements compared to the Development and verify conforming use and concurrency;
 - iv. Environmental aspects, to include a review of the Phase I Environmental Report and, if necessary, a Phase II Environmental Report, Asbestos Survey, and Lead-Based Paint Report; and
 - v. Local Government approval of preliminary plans and specifications.
 - c. Obtain and review, including a comparison to the application, a plan and cost review (preconstruction analysis) and, where applicable, a capital needs assessment for the Development.
3. With respect to the appraisal of the Development, the Servicer will:
- a. Review the appraiser's qualifications and technical sufficiency including the verification of current State of Florida certification and Florida license number. Florida Housing reserves the right to reject an appraiser.
 - b. Review the appraiser's valuation approach and provide an opinion as to the validity of the technique and value conclusion.
 - c. Review appraisal to determine whether the value of the land and the improvements to be acquired supports the acquisition cost.
 - d. Review appraisal to determine whether the value of completed or rehabilitated improved property supports the proposed sales price.
 - e. Confirm that the appraisal is certified and prepared for the Servicer as an agent for Florida Housing.

f. For Developments built per Ch. 67-50, F.A.C., review an appraisal for each model home proposed to be built and perform an affordability analysis for each.

4. With respect to the market study of the Development, the Servicer will:

a. Review the appraiser's qualifications and technical sufficiency including the verification of current State of Florida certification and Florida license number. Florida Housing reserves the right to reject an appraiser.

b. Review and verify the market study report to make a recommendation as to whether the market exists to support both the demographic and income restriction set-asides and any fixed rents committed to in the application. (The market study should be a separate report from the appraisal.)

c. Review the site for proximity to other market rate and affordable housing Developments and review the absorption rates, occupancy, and vacancy levels in the market, and the potential impact on existing Florida Housing Developments and the proposed Development.

d. In addition to the requirements of this section, for the Housing Credit Program, order the market study and collect money from the Applicant to pay for the market study.

e. Confirm that the market study is certified and prepared for the Servicer as an agent for Florida Housing.

5. With respect to the capital needs assessment for Developments that include rehabilitation activities, the Servicer will:

a. Order the capital needs assessment and accessibility review, to be completed by a Florida Housing-approved third-party provider and collect money from the Applicant to pay for it. No other underwriting activities shall occur until the capital needs assessment is complete.

b. The professional consultants engaged to provide the capital needs assessment will be selected from a Florida Housing approved list of qualified providers. The Servicer must obtain a minimum of two quotes from the pool of qualified providers and will award contracts based on the location of the project, the development type, timeliness and quality of previous submissions (if applicable), and the Development's demographic (e.g. elderly, special needs, etc.). The Servicer will not allow input from the Applicant or select a firm that has performed work for the Applicant related to the Development, unless otherwise approved by the Credit Underwriter and/or Florida Housing.

c. Review and verify the capital needs assessment report to make a recommendation as to the adequacy of its due diligence, its ability to address the Development's capital needs appropriately, that it was prepared in conformity with the Florida Housing *Capital*

Needs Assessment Guide, if applicable, and meets any additional standards set forth by Florida Housing.

d. The review, as appropriate, should assess that the report meets the following purposes of a capital needs assessment:

i. Description of the physical features or inventory of the Development and an assessment of its condition or state of repair and durability, including an estimate of the effective age and remaining useful life of the Development's systems and components, as described in the Florida Housing *Capital Needs Assessment Guide*.

ii. Identification of the Development's current and future capital repair, replacement, and maintenance needs, estimated in dollars as described in the Florida Housing *Capital Needs Assessment Guide*.

iii. An assessment of physical and/or design deficiencies pursuant to the RFA or application/rule requirements and accessibility requirements of the ADA, Section 504/UFAS, and the Florida Building Code, Accessibility.

iv. Identification, specification, and cost estimation of immediate repairs, critical repairs, deferred maintenance, replacements or additions, and correction of accessibility issues.

e. Confirm that the capital needs assessment is certified and prepared for Florida Housing.

f. The capital needs assessment approved by the Servicer and submitted to Florida Housing must include a rehabilitation scope of work that sufficiently addresses the needs identified in the report, given the available budgeted resources. The sources and uses of funding must be in balance and the entire scope of the rehabilitation must be detailed.

g. If the capital needs assessment shows that the Applicant cannot provide required accessibility features or other mandatory features and amenities within the contemplated budget, and after consultation with the Applicant, the Servicer is of the opinion that the requirements of the RFA/application package that funded the Development cannot be met, the Servicer shall be responsible for recommending to Florida Housing that funding should be rescinded in accordance with the Florida Housing *Capital Needs Assessment Guide*, as applicable.

h. As applicable, the Servicer shall provide the capital needs assessment and rehabilitation scope of work to the Applicant for review and comment within the timeframe outlined in the applicable RFA/application package. Upon receipt of the Applicant's comments and within the timeframes outlined in the applicable RFA/application package, the Servicer shall forward the rehabilitation scope of work, along with any comments provided by the Applicant, and Servicer opinions or recommendations regarding the Applicant's comments to Florida Housing for consideration. **NOTE:** Florida Housing reserves the right to reject a capital needs assessment.

6. With respect to the Development's economic feasibility, the Servicer will:

a. Review the sources and uses of funds and operating pro-forma statements to make sure that the Applicant has the resources to fund the cost of the Development and cover the debt service requirements.

b. For Developments built per Ch. 67-50, F.A.C., ensure that buyers in the chosen set-aside income ranges can afford the homes.

c. For Developments built per Ch. 67-50, F.A.C., review or recommend any pre-sale requirements that must be met prior to funding the Development.

d. For Developments built per Ch. 67-50, F.A.C., evaluate the proposed sales price of homes to ensure that they do not exceed the limits established in Ch. 67-50, F.A.C. and 24 CFR Part 92.

e. Obtain a copy of each Development's plans and specifications prior to submitting the credit underwriting report to Florida Housing for approval and compare the following for compliance with the RFA/application package or rule and where applicable for consistency to the capital needs assessment: basic structure components, green and energy features, accessibility, and other related property and unit features, amenities, and other commitments included in the Development's application, and include the results of this comparison in the credit underwriting report. The Servicer will confirm that the plans and specifications conform to the approved rehabilitation scope of work and comply with the Florida Housing *Capital Needs Assessment Guide*, if applicable. The Servicer will also review final plans and specifications prior to the loan closing and will notify Florida Housing of the results of this comparison. If construction has commenced for CDBG-DR and HOME funded Developments, the Servicer must verify that the completed work meets Federal Labor Standards. For Demonstration Loans, the Servicer will ensure that the Developer adheres to the requirements of the Demonstration Loan competitive solicitation under which funds were awarded, and other modifications outlined in the Development Plan submitted by the technical assistance provider.

i. New Construction

1) During Credit Underwriting, the Servicer will verify that the Applicant has contracted with a third-party verifier from the following list which may be amended from time to time: Leadership in Energy and Environmental Design (LEED), Florida Green Building Coalition (FGBC), Enterprise Green Communities, or ICC National Green Building Standard (NGBS).

2) For Developments in the new construction category that are a mix of new construction and rehabilitation, the Servicer will verify that the third-party verifier has deemed that it is feasible for the entire Development to achieve certification. If the third-party verifier determines that it is not feasible, the Applicant must select

the approved number of green building features from the list in the RFA for those units in the Development which cannot be certified. If this situation occurs, the Servicer will verify that the Applicant has selected the approved number of green building features from the list in the RFA.

3) For Developments that did not select green building certification, the Servicer will verify that the approved number of green building features have been selected from the list in the RFA.

4) Developments that are required to comply with the Energy Star program referenced in the RFA must contract with a certified Home Energy Rater to carry out certification. During Credit Underwriting, the Servicer will verify that the Applicant has contracted with a certified Home Energy Rater. For Developments not required to comply with Energy Star requirements, the Servicer will verify that the Applicant is prepared to provide the required energy features as described in the RFA.

5) All proposed Developments that involve any new construction units must include the required accessibility, emergency operations features, and amenities as listed in the RFA/application package. During Credit Underwriting, the Servicer will verify that the Applicant is ensuring compliance with all federal accessibility requirements and state building code requirements, including the following:

- a) Florida Accessibility Code for Building Construction (current edition), adopted pursuant to s. 553.503, F.S.;
- b) The Fair Housing Act (42 U.S.C. §§3601 - 3619) as implemented by 24 CFR Part 100;
- c) Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. § 701) as implemented by 24 CFR Part 8; and
- d) Americans with Disabilities Act of 1990 42 U.S.C. §§ 12101 et seq., as amended by the ADA Amendments Act of 2008, and as implemented by 28 CFR Parts 35 and 36, incorporating the most recent amendments, regulations and rules.

ii. Rehabilitation and Preservation

1) Developments are required to include features and amenities listed below from the RFA/application package. As described in the Florida Housing *Capital Needs Assessment Guide*, if applicable, the Servicer must verify that the capital needs assessment has addressed the features required in the funding RFA/application package, and that they are included in the rehabilitation scope of work and within the budget for the Development.

a) The accessibility and other related property and unit features listed in the RFA.

b) The emergency operations features listed in the RFA.

c) The energy features listed in the RFA.

2) The Servicer will verify that green building features have been selected from the list in the RFA.

7. The Servicer must perform an analysis of the Management Company, including a review of existing Developments currently being managed and determine whether the Management Company is acceptable to manage the Development. Any identified noncompliance issues of the Management Company must be included in the analysis and disclosed in the credit underwriting report.

8. The Servicer must complete a subsidy layering review if required by HUD, within the requirements set forth by HUD.

9. The Servicer must obtain and review any FHFC forms (which may be amended by Florida Housing), as required from the Architect, Developer, and Construction Consultant related to compliance with Fair Housing, Section 504 and ADA requirements for the design and as-built phases of the Development.

10. For CDBG-DR, NHTF, and HOME programs, the Servicer will ensure that Development materials and plans are in compliance with 24 CFR Part 92 for HOME funding, 24 CFR Part 93 for NHTF funding and the applicable Federal Register notice and Action Plan for CDBG-DR funding, and, when applicable, the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970, as amended, 42 U.S.C. Section 4601 et seq. and implemented at 49 CFR Part 24 with further guidance provided by HUD Handbook 1378; and the requirements of Section 104(d) of Title I of the Housing and Community Development Act of 1974, as amended and implemented at 24 CFR Part 42 and 24 CFR §§ 92.353 and 93.352).

a. With respect to relocation, the laws require that any tenant who is a legal resident of the project at the initiation of negotiations, as defined in 49 CFR § 24.2, and must move either permanently or temporarily from his or her dwelling unit as a direct result of rehabilitation, demolition or acquisition of a CDBG-DR or HOME assisted project, are entitled to relocation assistance. In those instances, the Servicer will, at a minimum, review:

i. Written notices to the tenants of the right to remain or the need to relocate.

ii. Evidence that the Developer provided advisory services to the tenants including notices, information booklets, explanation of assistance, referrals to social services, counseling and advice under the Fair Housing Act.

iii. The Development's pro-forma to ensure payment for the cost of relocation, reimbursement of moving and related expenses; and the cost of replacement housing

assistance for eligible tenants (42 months if tenant's income is 80 percent AMI and 60 months if tenant's income is less than 80 percent AMI) are reasonable and included.

11. The Servicer must review source and use analysis to ensure that, for the assisted units, funds are only used for eligible costs pursuant to 24 CFR § 92.206 for HOME units, 24 CFR § 93.201 for NHTF units, or the applicable Federal Register or Action Plan for CDBG-DR units.

12. For the Housing Credit Program, the Servicer will apply the applicable requirements of IRC § 42, as may be amended from time to time, in its review and in its housing credit amount determination.

13. For the Housing Credit Program, the Servicer must compute the number of housing credits a Development should receive by using the qualified basis calculation and the gap calculation. The Servicer must also compute the 50% test (or other percentage as amended by the IRS) for Developments funded with tax-exempt bonds that are requesting 4% credits.

14. For PLP, the Servicer will provide an analysis for any Development that is either: (1) using PLP funding for site acquisition or (2) if Florida Housing deems Credit Underwriting necessary to determine the feasibility of a development, the eligibility of the Applicant and/or its affiliates on a Development that does not include a request for acquisition funds or (3) an Applicant that is requesting a second one-year extension of the loan term, at the discretion of Florida Housing. In those situations where PLP funding is being requested for site acquisition, the credit underwriting report must provide Florida Housing with a recommendation as to whether the requested loan amount is adequate and of the amount necessary for site acquisition and related closing costs. In the instances where a PLP applicant is requesting an extension of the loan term, the Servicer will provide Florida Housing with a recommendation that the extension is likely to result in successful completion of the development.

15. On a bi-monthly basis, the Servicer must submit written reports providing an update on the status of each Development the Servicer is in the process of underwriting. At a minimum, the report will include: Development name and application number(s), name of credit underwriter, fee status, receipt dates of appraisal and market study reports, site visit date, units occupied, date of latest draft, date of final or revised final report and a comment section.

16. After receipt of all requested material from the Applicant, the Servicer will complete credit underwriting in compliance with the statutes, rules, and RFAs pertaining to the particular program (i.e., HOME, HAP, PLP, SAIL, MMRB, NHTF, CDBG-DR) and provide a written draft report to Florida Housing and the Applicant. Florida Housing and the Applicant will make comments and submit to the Servicer for possible incorporation into a final credit underwriting report.

17. The Servicer will electronically provide the credit underwriting report data in a Florida Housing-approved Excel template within two weeks of completion of the credit underwriting report, which may be amended from time to time. Servicer is also responsible for maintaining up-to-date credit underwriting report templates, communicating any updates

to the template with Florida Housing, and ensuring the templates are fully compatible with Florida Housing database systems.

18. The Servicer must be present when the final credit underwriting report is presented to the Board.

19. The Servicer will review proposed property insurance coverage for compliance with the FHFC Insurance Guide, as applicable.

20. The Servicer must attend the loan closing for MMRB issuances only.

21. The Servicer will review commitment letters and other appropriate legal documentation to ensure that the loan terms outlined in the credit underwriting report are incorporated into the loan documents.

22. The Servicer must provide Florida Housing with a letter at closing that indicates that all loan closing conditions listed in the credit underwriting report have been met. The Servicer must also provide Florida Housing with a dated and signed copy of approved sources and uses and a construction draw schedule.

23. For Developments built per Ch. 67-50, F.A.C., the Servicer will perform an analytical review of the proposed Development for applicants requesting purchase assistance loans to determine the feasibility and viability of the Development. Information and documentation required for this analysis may or may not entail compilation of all of the information included in Section Four, Item I.C. of this RFQ. This review will be done in accordance with Ch. 67-50, F.A.C.

24. The Servicer will provide both Applicant and developer organization charts within the Credit Underwriting reports.

25. The Servicer will provide summaries for the following headings within the Credit Underwriting reports:

- a. Appraisals;
- b. Market Studies;
- c. Environmental Reports;
- d. Soil Test Reports;
- e. Capital Needs Assessments;
- f. Property Conditions Reports; and
- g. Site Visits.

26. The Servicer must participate in and/or conduct training workshops and/or webinars for personnel to ensure compliance with Federal laws and regulations, State laws, and Florida Housing rules concerning program requirements including Fair Housing laws. Workshops and/or webinars will be conducted at least quarterly.

D. The process to be used by the Servicer to underwrite for program eligibility all individual borrowers financed by Florida Housing under Ch. 67-57 or 67-50, F.A.C., at a minimum, the factors outlined in items 1. through 22. below (as applicable according to the program):

1. For Borrowers purchasing homes constructed in conjunction with Ch. 67-50, or 67-57, F.A.C., perform a Borrower analysis to determine the eligibility of persons applying for subordinate mortgage loans by performing, at a minimum, the following:

- a. Review Mortgagor's affidavits and Lender's affidavits for the following:
 - i. Completion and execution of documents in accordance with procedures by the homebuyer and the lender, as applicable;
 - ii. Verification that each homebuyer's gross annual family income does not exceed the program income limits;
 - iii. Verification that the purchase price of the home does not exceed program limits; and
 - iv. Verification that all condition in the firm commitment to the Developer have been met and immediate notification to Florida Housing of noncompliance with the conditions of the commitment.
- b. Prior to the homebuyer closing and receiving the subordinate mortgage, the Servicer or its designee will inspect the construction of the house, if constructed per Ch. 67-50, F.A.C., and assure Florida Housing, in writing, that all applicable program application requirements have been met.
- c. If constructed per Ch. 67-50, F.A.C., and for the HOME program only, prior to the home buyer closing and receiving the subordinate mortgage, the Servicer or its designee will inspect the construction of the house and assure Florida Housing that all applicable HUD Requirements (24 CFR Part 92) have been met.
- d. The Servicer will review and verify required documents under Ch. 67-50 or 67-57, F.A.C., and set up individual files for each house (in addition to the servicing file for the entire Development mentioned previously in Item D.1. of this section, if applicable) containing appropriate documentation (including income verification documents, location, purchase price, HUD Uniform Relocation Act Notice to Sellers, HUD Housing Quality Standards Inspection, Environmental Review checklist, Lead Based Paint Notice, HOME Program Agreement, promissory note, certified original copy of subordinate mortgage, HUD- 1 Settlement Statement, title insurance policy, copy of first mortgage note, and mortgage); and

e. Submit a complete file on the homebuyer to Florida Housing on or before the 45th Day after the date of closing of the subordinate mortgage, or an explanation as to why the file has not been submitted, accompanied by appropriate documentation.

II. Construction Loan Servicing

A. The Servicer will provide the following services for all recipients of Construction Loans as applicable pursuant to the loan documents:

1. Establish servicing files for each Development that will contain copies of all documents and reports pertaining to the Development.

2. Review each Draw Request from the Applicant. The Servicer will determine that the following conditions, as applicable, have been met prior to each Draw Request being paid:

a. The work completed by the Developer justifies the amount of the draw based on a physical inspection (of the work completed) by the Servicer or approved third-party inspector.

b. The good and insurable title to the property is vested in the Applicant, free and clear of all encumbrances, except as provided in the original title insurance commitment or policy insuring the Development and delivered at the loan closing, based upon a title endorsement provided by the Applicant.

c. The Applicant, or its designee, has furnished the Servicer with an affidavit stating whether the Applicant has been served with any written notice that a lien may be claimed for any amounts by any person or entity furnishing materials or performing labor of any kind in the construction process of the Development through the date of the previous disbursement. The affidavit must include copies of the notices of any liens. In the event a lien has been filed against the property, the Servicer will require that such lien be satisfied, escrowed, or bonded before approving a Draw Request.

d. The Applicant has procured proper construction lien waivers including, but not limited to, a contractor's affidavit or bonds from the general contractor and all sub-contractors, which have provided statutory "Notice to Owner" to the Servicer through the date of the previous disbursement.

e. The Applicant has furnished the Servicer satisfactory evidence that the undisbursed proceeds of the Construction Loan shall be sufficient to pay the cost of completing the construction of the Development as required by the Construction Loan documents and notify Florida Housing within 15 Days.

f. The construction of the Development is not in violation of the LURA and/or EUA, or any covenants, restrictions, codes, or zoning ordinances affecting the Development.

g. The Applicant has provided the Servicer with a title endorsement indicating that there has been no change in the state of title to the Development since the issuance of the policy.

h. An authorized officer of the Applicant will execute each Draw Request. The names and signatures of the officers of the Applicant who are authorized to execute Draw Requests will be provided to Florida Housing and the Servicer prior to the commencement of draw requests and within seven business days following any change(s) in officers.

i. A draw approval from the Applicant's engineer or architect, which indicates that work has been accomplished in accordance with the plans and specifications to entitle the Applicant to the Draw will accompany each Draw Request.

j. The general contractor's commercial general liability (CGL) policy, the Applicant's CGL and the engineer or architect's professional liability insurance, or comparable insurance coverage, is in force, as applicable. The general contractor's CGL policy should contain additional insured language covering both the Applicant and Florida Housing.

k. Any change orders are within the scope of the plans and specifications and in compliance with Florida Housing's rules and that the Applicant has furnished the Servicer satisfactory evidence that the undisbursed proceeds of the Construction Loan shall be sufficient to pay the cost of completing the construction of the Development as required by the Construction Loan documents.

l. All Federal Labor Standards and Section 3 – Housing and Urban Development Act of 1968 (“Section 3”) requirements have been met, for the applicable programs.

m. Florida Housing has been advised that all requirements for the Draw Request have been satisfied and, if any requirements are remaining and unfulfilled, that they have been properly documented and addressed by the Applicant.

n. For Developments built per Ch. 67-50, F.A.C., the Applicant has met any pre-sale requirements recommended in the Credit Underwriting Report.

o. The Applicant has fully complied with all other provisions of the Construction Loan documents.

p. Included in the Draw Request authorization from the Servicer to Florida Housing, the Servicer will include at least the following information:

- i. The total amount of funds approved to be drawn by the Development;
- ii. The funding source(s) and amount(s) funding the total Draw Request;
- iii. The total gross amount of each funding source committed to the Development (in dollars), amount funded for each source after the given draw is

disbursed (in dollars and percent of gross commitment), and the remaining available funding for each source (in dollars); and

iv. The construction completion status stated as a percent of completion.

3. Within five Days after a physical inspection of the construction at the Development, or if physical inspections are sub-contracted by the Servicer within five Days after receipt of an inspection report, notify Florida Housing and the Applicant of approval, disapproval, or modification of the Draw Request. The inspection report must include statements that the following items have been considered in the scope of the inspection as well as the status of their appropriate compliance requirements:

a. Construction features and amenities per the closing documents;

b. Accessibility features and accessible units, per the closing documents;

c. Federal and state accessibility requirements, including the following:

i. Florida Accessibility Code for Building Construction (current edition), adopted pursuant to s. 553.503, F.S.;

ii. The Fair Housing Act (42 U.S.C. §§3601 - 3619) as implemented by 24 CFR Part 100;

iii. Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. § 701) as implemented by 24 CFR Part 8; and

iv. Americans with Disabilities Act of 1990 42 U.S.C. §§ 12101 et seq., as amended by the ADA Amendments Act of 2008, and as implemented by 28 CFR Parts 35 and 36, incorporating the most recent amendments, regulations and rules.

4. Provide a monthly written statement to the Applicant of the amount due and payment date on the Construction Loan. All interest calculations will be computed based on actual number of days divided by actual number of days.

5. Collect loan payments from the Applicant and make the appropriate remittances to Florida Housing within 20 Days of collection or when the balance due to Florida Housing exceeds \$250,000. For remittances not received by Florida Housing within 20 Days of the date received by the Servicer, the Servicer may be subject to a 5% late charge of the remittance amount.

6. Maintain all accounts held on behalf of the Applicant, Florida Housing, and where applicable, the mortgagors, in an Eligible Depository or Acceptable Depository Account.

7. Service delinquent accounts of Applicants including, but not limited to, sending notices as required by the loan documents, with a copy to Florida Housing, and implementing

all appropriate collection procedures. The Servicer may retain late fees collected, after Florida Housing's interest, principal and other applicable fees, if any, have been paid. However, late fees retained by the Servicer will not include late filing fees assessed to and collected from Borrowers for failure to submit audited financial statements by the required deadline. These late fees must be remitted to Florida Housing.

8. Analyze each capitalized interest account semi-annually to ensure adequate funding is available to complete construction. If the review determines the funds in the account are inadequate to complete construction, Florida Housing must be notified in writing within 15 Days of the determination.

9. Establish and maintain escrow accounts, if not held by the Trustee (or entity acting in similar capacity; e.g., Fiscal Agent) or first mortgagee and not subject to a joint escrow (or similar) agreement, as follows:

- for replacement reserve;
- for sinking fund;
- for operating reserve; and
- for any other transaction established escrow, as applicable.
- [if not commingled] titled in the Development's name, with Development tax identification number, in care of the Servicer;
- require two signatories for all withdrawals/payments;
- perform monthly reconciliation (by the Servicer) by someone other than the individual who prepares deposits or withdrawals;
- determine adequacy after each disbursement; and
- maintain all accounts at an Eligible Depository within an Acceptable Depository Account.

Review all such escrow accounts on an annual basis for adjustments (e.g., the required balance, amount of periodic escrow payments, etc.), if necessary.

If an escrow account balance exceeds insurable limits and the excess is not collateralized, then the excess amounts must be maintained within an Acceptable Depository Account at an Eligible Depository.

Escrow accounts for multiple Developments may be commingled. The Servicer shall maintain records on a loan-by-loan basis regarding the Applicant, Development, purpose or source, etc., as applicable, of the commingled funds such that the monies can be accurately accounted for and managed on an ongoing basis as if they were not commingled. If held in an interest-bearing account, none of the interest earned may be retained by the Servicer and all such interest must be distributed on a pro-rata, loan-by-loan basis for each transaction established escrow at least quarterly.

For escrows held by the Trustee (or entity acting in similar capacity; e.g. Fiscal Agent) or first mortgagee, where applicable, the Servicer shall conduct a periodic analysis of the escrow(s) and deliver to the Trustee or mortgagor a statement setting forth the amounts to be

paid by the Borrower into the escrow to ensure the adequacy of the account balance for its intended purpose, subject in all respect to the applicable loan documents.

10. Upon request by Florida Housing, perform an analysis of disbursements from any escrow account.

11. Verify the adequacy of all insurance policies and ensure that Florida Housing is named as loss payee, mortgagee, and additional insured, as applicable, pursuant to the FHFC Insurance Guide. Track the renewal or anniversary premium payment dates of all insurance policies, as applicable. Notify Florida Housing, in writing, of any coverage lapses, policy terminations or expirations.

a. In the event of a loss, the Servicer will review and disburse the insurance proceeds in accordance with Section Four, Item II of this RFQ. Compensation for managing insurance proceeds in the event of a loss will be at the hourly rates for extraordinary services outlined in the Contract.

12. Verify in writing the Development is built to the standards set forth in the Applicant's application to Florida Housing. Inspections must include a review of 100% of the accessible units and accessibility features located at each Development. Include statements that the following items have been considered in the scope of the inspection as well as the status of their appropriate compliance requirements:

a. Construction features and amenities per the closing documents;

b. Accessibility features and all accessible units, per the closing documents;

c. Federal and state accessibility requirements, including the following:

i. Florida Accessibility Code for Building Construction (current edition), adopted pursuant to s. 553.503, F.S.;

ii. The Fair Housing Act (42 U.S.C. §§3601 - 3619) as implemented by 24 CFR Part 100;

iii. Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. § 701) as implemented by 24 CFR Part 8; and

iv. Americans with Disabilities Act of 1990 42 U.S.C. §§ 12101 et seq., as amended by the ADA Amendments Act of 2008, and as implemented by 28 CFR Parts 35 and 36, incorporating the most recent amendments, regulations and rules.

13. In addition to the physical inspections needed for processing Draw Requests, the Servicer will conduct physical inspections of Developments at Florida Housing's request, notify Florida Housing of any deficiencies found, and recommend corrections.

14. In the event that Florida Housing forecloses on a Development, the Servicer will provide documents and other information in its files regarding the Development and testify on Florida Housing's behalf. If the Servicer is requested to provide additional services related to the foreclosure, the payment for such services will be negotiated and agreed to prior to proceeding but will not be in excess of the hourly rates for extraordinary services outlined in the Contract.

15. For the Housing Credit Program, a physical inspection of the Development will be done to compare basic structure components and accessibility features, as specified in the RFA, along with emergency operations features, green building features; energy efficiency, or resilience features; and amenities, to the final plans and specifications, and the application. Inspections must include a review of 100% of the accessible units and accessibility features located at each Development. For competitive housing credit Developments, a minimum of four inspections with one inspection occurring prior to 15% completion and one inspection upon completion will be conducted by the Servicer. For non-competitive housing credit Developments, one inspection upon completion, with any necessary follow-up inspections, as directed by Florida Housing, will be conducted by the Servicer. The Servicer will verify the features and amenities as specified in the application, as amended, and provide a written report of the findings of the inspections to Florida Housing within 15 Days of inspection.

16. During Credit Underwriting, the Servicer will verify that the Developer has contracted with a third-party verifier from the following list which may be amended from time to time: Leadership in Energy and Environmental Design (LEED), Florida Green Building Coalition (FGBC), Enterprise Green Communities, or ICC 700 National Green Building Standard (NGBS).

17. New construction Developments that selected green building certification in the RFA must be inspected by a third-party verifier from the following list which may be amended from time to time: Leadership in Energy and Environmental Design (LEED), Florida Green Building Coalition (FGBC), Enterprise Green Communities, or ICC 700 National Green Building Standard (NGBS). The Servicer will confirm that the third-party verifier has inspected the Development and that it meets the requirements of the applicable green building certification program.

18. Report the status of construction (buildings and units completed) each month to Florida Housing. The status report must document the status of liens outstanding against the Development and the status of construction draws, including amount of any draw, total amount disbursed, and balance of loan remaining. If a project is lagging behind the construction schedule projected in the credit underwriting report, the Servicer will include that information in the monthly report. The form of the report will be provided by Florida Housing.

19. Track each property's status of completion and letters of credit, if any. The Servicer will be responsible for recommending, in writing, to Florida Housing and the Trustee, if applicable, any draws prior to the expiration of the letter of credit and the release of the collateralization and the guarantee (according to the terms specified in the closing documents, if applicable); if all conditions outlined for release have been satisfied; or for recommending

the continuation of the collateralization, if the satisfaction of the terms of the guarantee and/or bond documents, as applicable, have not been met, as determined by the Servicer.

20. For Developments built per Ch. 67-50, F.A.C., provide reports to Florida Housing for Construction Loans being serviced.

A monthly report must include, at a minimum, the following information:

- a. Development name;
- b. Development number that was assigned by Florida Housing;
- c. Developer name;
- d. Applicant name;
- e. Construction Loan amount;
- f. Set-aside requirements;
- g. Total Construction Loan funds disbursed;
- h. Total Permanent Loan funds reserved for home buyers;
- i. Total Permanent Loan funds received by home buyers;
- j. Number of homes sold;
- k. Number of households receiving Permanent Loans;
- l. Number of confirmed pre-sales;
- m. Details including all buyers purchasing homes in the Development and separately those buyers purchasing homes in the Development receiving Permanent Loans, which summary of information must include:
 - i. Average sales price;
 - ii. Average income;
 - iii. Average family size;
 - iv. Average age of Borrowers and average age of co-Borrowers;
 - v. Average age of Borrowers and co-Borrowers who are elderly as defined in s. 420.503(15), F.S., as amended;

- vi. Total number of Borrowers and co-Borrowers that are farm workers, as defined in s. 420.503(18), F.S.; and
- vii. Total number of Borrowers, by race (white; black or African American; Hispanic or Latino; American Indian and Alaskan Native; Asian; and Native Hawaiian and Other Pacific Islanders); and total number of co-Borrowers, by race.
- n. Additionally, for each home built per Ch. 67-50, F.A.C., purchased with a Permanent Loan:
 - i. Borrower's name;
 - ii. Number of persons in household;
 - iii. Gross annual household income;
 - iv. Legal description of property;
 - v. Sales price;
 - vi. Amount of Permanent Loan funds reserved, if applicable;
 - vii. Amount of Permanent Loan funds received, if applicable;
 - viii. Set-aside category;
 - ix. First mortgage interest rate;
 - x. Borrower's AMI% level;
 - xi. Type of interest rate;
 - xii. Type of loan; and
 - xiii. Whether the Development meets its set-aside requirements.

B. The Servicer will ensure that the requirements of the Davis-Bacon Act, 40 U.S.C. 3141, as required by HUD, the Contract Work Hours and Safety Standards Act, 40 U.S.C. 3701, 24 CFR Part 75, which implements Section 3 of the Housing and Urban Development Act of 1968, 12 U.S.C. 1701u and, Debarment and Suspension (Executive Orders 12549 and 12689), and the Copeland Act, 40 U.S.C. 3145 implemented by 29 CFR Part 3, are being met during the construction of any Development receiving a HOME, NHTF, or CDBG-DR Loan or any other federally funded program where compliance of these requirements is required. The Servicer will submit documentation sufficient for Florida Housing to certify to HUD that these requirements are being met.

1. To aid in this process, Florida Housing will perform the following functions for Federal Labor Standards requirements:

- a. Provide compliance procedure guidelines regarding Federal Labor Standards monitoring
- b. Have certification signed regarding debarment, suspension, ineligibility and voluntary exclusion.

2. The Servicer, or its designee, will be required to perform functions including, but not limited to, the following:

- a. Verify the general contractor's eligibility for contract award.
- b. Complete a SAM.gov debarment check for all contractors and subcontractors.
- c. Forward information regarding Federal Labor Standards to the identified general contractor and all subcontractors.
- d. Conduct a pre-construction conference to review the Federal Labor Standards. At a minimum, the Applicant and the general contractor will attend.
- e. Prepare and issue pre-construction conference minutes to Florida Housing and all attendees.
- f. Ensure that all bid documents, contract and subcontracts contain the appropriate labor standard provisions.
- g. Re-verify wage rates of anticipated worker classifications using Davis-Bacon Act forms.
- h. Verify authenticity of any apprenticeship programs and proper registration of identified apprentices.
- i. Verify authenticity of any training programs and proper registration of identified trainees.
- j. Conduct on-site inspections including interviews of employees of the Developer, general contractor or subcontractors using form HUD-11. This will include monthly site interviews, and monthly mail interviews (postage paid return envelope provided). Ensure the proper Davis-Bacon notices are posted on the jobsite.
- k. Review the certified weekly payrolls from the Developer, general contractor and all sub-contractors to ensure that information was properly input into the Corporation-provided software system, including:
 - i. The payroll report is complete and certification has been signed.

- ii. An employee record form has been submitted to the Servicer for each worker on the payroll.
 - iii. Classifications and wage rates are equal to or exceed the rates required by HUD.
 - iv. Overtime hours and wages are properly calculated.
 - v. Payroll deductions have been made in accordance with Department of Labor Regulations.
 - vi. Fringe benefits have been paid in cash to an approved third-party plan, fund, or program.
 - vii. The ratio of apprentices to journeymen does not exceed the ratio stipulated under the approved program.
 - viii. The ratio of trainees to journeymen does not exceed the ratio stipulated under the approved program.
- l. Recommend withholding Draw Request disbursements to Developers if certified payrolls have not been forwarded when due or if outstanding discrepancies have not been resolved.
- m. Prepare and forward a Federal Labor Standards Report due no later than the 25th of each month to Florida Housing including the following:
- i. Summaries of payroll reviews including all discrepancies and status of the resolution, including details of any restitution payments.
 - ii. Dates of all monthly site and mail interviews, and summary of issues resulting from the interviews.
 - iii. Any further information for Florida Housing to complete the HUD Semi-Annual Labor Standards Enforcement Report (HUD Form 4710).
3. The Servicer, or its designee, will be required to perform functions outlined and identified as Servicer Responsibilities in the Section 3 Plan for Florida Housing, as posted on the Florida Housing website.

C. For the HOME and NHTF programs, the servicer will ensure that the requirements of Build America, Buy America Act, as detailed in the Infrastructure Investment and Jobs Act, Pub. L. 117-58 and 2 CFR part 184, with additional guidance from Notice CPD-2025-01: BABA Implementation Guidance for the Buy America Preference are enforced for covered projects. Florida Housing will provide compliance procedure guidelines.

III. Permanent Loan Servicing

A. The Servicer will provide the following services for all recipients of Permanent Loans, as applicable, pursuant to the loan documents and the FHFC Insurance Guide which can be found at <https://floridahousing.org/data-docs-reports/insurance-guide>.

1. Establish separate loan servicing files for each Development, which will contain copies of all closing documents pertaining to the Development.
2. Furnish billing statements to the Developer with amount of payments due to Florida Housing. All interest calculations will be computed based on actual number of days divided by actual number of days.
3. Collect loan payments and allocate funds to the appropriate servicing accounts and make all appropriate remittances to Florida Housing or the trustee, if applicable, within 20 Days of collection or when the balance due Florida Housing exceeds \$250,000. For remittances not received by Florida Housing or its Trustee, if applicable, within 20 Days of the date received by the Servicer, the Servicer may be subject to a late charge of 5% of the remittance amount, at the sole discretion of Florida Housing.
4. Maintain all accounts held on behalf of the Developer, Florida Housing, and where applicable, the mortgagors, in an Acceptable Depository Account at an Eligible Depository.
5. Service delinquent accounts of Developers, including, but not limited to, sending notices as required by the loan documents and implementing all appropriate collection procedures. Collection procedures should include, for accounts over 30 days past due, a phone call with the Developer. The Servicer may retain late fees collected, after Florida Housing's interest, principal, and other applicable fees, if any, have been paid. However, late fees retained by the Servicer will not include late filing fees assessed to and collected from Borrowers for failure to submit audited financial statements by the required deadline. These late fees must be remitted to Florida Housing.
6. Establish and maintain escrow accounts, if not held by the Trustee (or entity acting in similar capacity; e.g., Fiscal Agent) or first mortgagee and not subject to a joint escrow (or similar) agreement, as follows:
 - for replacement reserve;
 - for sinking fund;
 - for operating reserve; and
 - for any other transaction established escrow, as applicable.
 - [if not commingled] titled in the Development's name, with Development tax identification number, in care of the Servicer;
 - require two signatories for all withdrawals/payments;
 - perform monthly reconciliation (by the Servicer) by someone other than the individual who prepares deposits or withdrawals;
 - determine adequacy after each disbursement; and

- maintain all accounts at an Eligible Depository within an Acceptable Depository Account.

Review all such escrow accounts on an annual basis for adjustments (e.g. the required balance, amount of periodic escrow payments, etc.), if necessary.

If an escrow account balance exceeds insurable limits and the excess is not collateralized, then the account must be maintained at an Eligible Depository.

Escrow accounts for multiple Developments may be commingled. The Servicer shall maintain records on a loan-by-loan basis regarding the Developer, Development, purpose or source, etc., as applicable, of the commingled funds such that the monies can be accurately accounted for and managed on an ongoing basis as if they were not commingled. If held in an interest-bearing account, none of the interest earned may be retained by the Servicer and all such interest must be distributed on a pro-rata, loan-by-loan basis for each transaction established escrow at least quarterly.

For escrows held by the Trustee (or entity acting in similar capacity; e.g., Fiscal Agent) or first mortgagee, where applicable, the Servicer shall conduct a periodic analysis of the escrow(s) and deliver to the Trustee or mortgagor a statement setting forth the amounts to be paid by the Borrower into the escrow to ensure the adequacy of the account balance for its intended purpose, subject in all respect to the applicable loan documents.

7. Upon request by Florida Housing, perform an analysis of disbursements from any escrow account.

8. The Servicer will ensure that at all times during the existence of the loan all buildings and improvements making up the Development are insured, as applicable, pursuant to the FHFC Insurance Guide. This includes the review of any amendment to, or renewal of, such insurance for compliance with the FHFC Insurance Guide. In the event the Developer fails to maintain such insurance in full force and effect, and upon the written authorization of Florida Housing, such insurance will be maintained by the Servicer, subject to payment by Florida Housing, which will advance necessary loan funds to the Servicer, upon request from the Servicer. The Servicer will retain and safely store, service and continually maintain all such policies and documents related thereto as required herein.

9. Track and review each property's operating deficit guarantees as well as any supporting collateral (e.g., letter of credit) securing the guarantees at a frequency consistent with the collateral term, but not less than annually. Upon receipt of a written request from the guarantors asking that the guarantees and/or collateral securing the guarantees be released, the Servicer will be responsible for evaluating the request (along with all supporting documentation provided by the guarantors) and making a recommendation, in writing, to Florida Housing (and the Trustee or Fiscal Agent, if applicable) as to whether the release request should or should not be granted. In addition to the information provided by the guarantors, the Servicer's recommendation should also take into account the related terms and conditions specified in the loan documents. With regard to any collateral securing the

guarantees, the Servicer will notify Florida Housing (and the Trustee or Fiscal Agent, if applicable), in writing, within a reasonable period of time prior to the expiration of a letter of credit (or any other collateral account or instrument) securing the guarantees.

10. Provide loan servicing reports in writing to Florida Housing pursuant to the schedule of report dates provided by Florida Housing at the beginning of each year and as amended from time to time which identify all delinquent accounts and/or default issues, as well as all default/non-compliant insurance issues.

11. Provide quarterly (March, June, September, December) Trial balances to Florida Housing 45 days after the end of the quarter (5/15, 8/14, 12/15 and 3/17) for each program area identifying the current loan balances and accrued and unpaid interest of all Developments in the Servicer's portfolio being serviced on behalf of Florida Housing in a Florida Housing-approved format.

12. Timely file Uniform Commercial Code (UCC-3) continuation statements with the Florida Secretary of State and where applicable, with the appropriate county office.

13. For designated homeownership programs, the Servicer will annually verify whether the residence continues to be occupied by the person named on the subordinate mortgage. The Servicer verification will be performed in compliance with the following Florida Housing and HUD standards.

a. Send a letter to the person named on the subordinate mortgage, or that person's surviving spouse, requesting a notarized statement regarding occupancy of the house and requesting a copy of the most recent utility bill that must reflect the address of the house.

b. If no response is received to the first letter, the Servicer will send a second letter within three months requesting the same information to the person named on the subordinate mortgage, or that person's surviving spouse.

c. If no response to either the first or second letter is received, Florida Housing will be sent written notification of those residences not responding. The Servicer will also suspend future efforts to verify occupancy until notified by Florida Housing in writing to resume.

14. Annually, collect from the Borrower (or Owner, as applicable) and submit to FHFC, the SR-1 form and related audited financial statements as stated in Rule 67-48.010, 67-48.020, and 67-48.023, F.A.C., as applicable. This applies to any FHFC funding, including Housing Credits.

B. The Servicer will promptly notify Florida Housing of any of the following which may come to the attention of the Servicer with respect to the loan:

1. Any failure of the Developer to perform any covenant or obligation, applicable to it, under the loan documents (of which the Servicer has knowledge).

2. Abandonment of the Development.
3. Any lack of repair or deterioration or waste suffered or committed in respect to the Development.
4. Any other matter which would adversely or materially affect or result in diminution of value of the security described herein and in the loan documents.
5. Any loss or damage by fire or any hazard to the Development requiring repairs costing in excess of \$15,000 to restore the Development to its condition prior to such loss or damage.
6. Any change in ownership of the Development or the Borrower which has not been approved by Florida Housing or is not otherwise approved in the Land Use Restriction Agreement, the Construction Loan Agreement, or the Mortgage.

IV. Compliance Monitoring

Servicing for any Florida Housing program must comply with Ch. 420, Part V, F.S., and Rule Ch. 67-53, F.A.C., which may be amended from time to time, for each Florida Housing program set forth in the applicable rule chapter of the Florida Administrative Code. To ensure each Development's compliance with Federal and State laws, rules, and any loan closing documents currently in effect and as may be revised from time to time, the Servicer will provide, at a minimum, the following services:

A. Introductory Conference

Prior to the leasing of any Development units, the Servicer will conduct an introductory conference with the owner contact or Management Company personnel to provide complete instructions regarding items 1 through 17 below. Upon completion of the conference, the Servicer will provide written confirmation to Florida Housing that the following items have been addressed:

1. Federal requirements including, but not limited to, the minimum number of set-aside units, certification and recertification of tenants, and documenting the next-available-unit, when applicable;
2. State laws including, but not limited to, additional set-aside units and any program requirements as may be required by Ch. 420, Part V, F.S., and Rule Ch. 67-21, 67-48, and 67-53, F.A.C., as may be amended from time to time;
3. Florida Housing rules concerning tenant income restrictions;
4. Requirements found in the application, credit underwriting, carryover agreement, regulatory agreement or loan closing documents, as applicable;
5. Resident programs/public purpose requirements;

6. Affirmative Fair Housing Marketing Plan requirements as applicable, as may be amended from time to time;

7. Tenant applications - specific information necessary for continued program compliance;

8. Income limits, as may be amended from time to time;

9. Rent limits, as may be amended from time to time;

10. Income verification;

11. Rent restrictions or controls;

12. Utility allowance;

13. Annual income and assets;

14. Tenant income certification;

15. Lease;

16. Program report;

17. Units exempted from certification for management or security officer residence, and;

18. Owner's compliance responsibilities including, but not limited to:

a. Notifying Florida Housing and the Servicer of any change in Development ownership; and

b. Notifying Florida Housing and the Servicer of any change of Management Company prior to the company becoming responsible for management of the Development.

c. Notifying Florida Housing and the Servicer if, at any time, any unit is not available for occupancy such as following a casualty loss including the expected duration of unavailability and any interim resident relocation plan.

d. Compliance with the Corporation's Lowering Barriers to Entry requirements.

B. Program Reports

For all Developments funded by Florida Housing, the Servicer will collect program reports (form PR-1) from the owner or Management Company. The program report provides a unit-by-

unit listing of all units in the Development and gives detailed information regarding the occupants' eligibility and set-aside requirements. The program report will be collected electronically in accordance with the deadlines stated in Item IV.B.2 below.

1. The Servicer will perform the following functions regarding the program reports:
 - a. Review *Program Report - Recap of Tenant Income Certification Information* worksheet for completeness, including proper execution, and income eligibility.
 - b. Confirm that all required recertifications are completed in a timely manner.
 - c. Confirm that all new move-ins and move-outs have been correctly designated.
 - d. Review the program report to determine that the applicable program set-aside requirements have been met.
 - e. The Servicer will keep all program reports and Tenant Income Certifications in files of the Servicer.
 - f. Contact the owner or Management Company, as applicable, immediately following the due date if the program report has not been received. A record of the tardiness will be kept. If a pattern of tardiness develops, a letter will be sent by the Servicer to the owner with a copy to the Management Company, giving notice that extra effort should be made to assure arrival of program reports no later than the due date.
 - g. Write or telephone the owner or Management Company, as applicable, regarding any discrepancies found during evaluation of a program report. A response from the owner or Management Company is due to the Servicer within 15 Days of the notification of the discrepancy. If the owner or Management Company does not respond on or before the end of the 15 Day period, the Servicer will contact the owner or Management Company, as applicable, to determine the reason. Any telephone response will be documented in the Development file.
 - h. When program report information is incorrect, the Servicer will make a note to the file to review the next monthly program report to confirm that errors have been corrected and will instruct the owner or Management Company, as applicable, to apply corrections to the next program report submitted electronically to Florida Housing. When the Servicer does not evaluate a Development's program report each month, the Servicer will instruct the owner or Management Company, as applicable, to apply corrections to the program report for the program report month that the Servicer evaluated and submit the revision electronically to the Servicer alone.

2. Collection of program reports will be as follows:

a. Initial Program Report

i. When a Development receives competitive Housing Credits, HOME Rental NHTF, or CDBG-DR funds and the Development is occupied at closing or carryover, the initial program report will be prepared as of the last day of the calendar month during which the loan closing or the execution of the Housing Credits carryover allocation agreement occurs, and will be submitted no later than the 15th of the following month. When the Florida Housing Applicant does not yet have site control when execution of the carryover allocation occurs, timing of initial program report preparation and submission will stem from the date site control is achieved. The Servicer will collect a copy of the program report accompanied by copies of executed tenant income certifications for 10% of the certified units.

ii. When a Development receives competitive Housing Credits, HOME Rental, NHTF, or CDBG-DR funds and the Development is not occupied at closing or carryover, the Initial program report will be prepared as of the last day of the calendar month during which rental of the initial unit occurred and will be submitted no later than the 15th of the following month. The Servicer will collect a copy of the program report accompanied by copies of executed tenant income certifications for 10% of the certified units.

iii. When a Development receives an allocation of non-competitive Housing Credits without any Florida Housing issued loans, the initial program report will be prepared no later than the last day of the calendar month during which final Housing Credit allocation occurred and will be submitted no later than the 15th of the following month. Program reports for calendar months prior to final Housing Credit allocation may be prepared and submitted when deemed necessary by the Servicer or Florida Housing. The Servicer will collect a copy of the program report accompanied by copies of executed tenant income certifications for 10% of the certified units.

a. Ongoing Program Reports

All program reports will be prepared as of the last day of each calendar month.

i. Except for Housing Credits, HOME Rental, NHTF and CDBG-DR, once during each calendar quarter of the entire regulatory period, the Servicer will collect a program report for the month that ends each quarter no later than 15th calendar days after each quarter's end. The program report must be accompanied by copies of 10% of the executed tenant income certifications effective since the last program report.

ii. Housing Credits, HOME Rental, NHTF and CDBG-DR

Once during each year of the entire regulatory period, on a date established by Florida Housing, the Servicer will collect a copy of the program report accompanied

by copies of 10% of the executed tenant income certifications that were effective since the last program report that was evaluated by the Servicer.

c. For all programs, a single compliance and occupancy data report will be provided on or before 75 calendar days following the due date of the Program Reports. For each Development, the attained number of set-aside units will be entered for each applicable income category, demographic category and special set-aside as well as the attained number of set-aside units for each program applicable to a Development. The total number of units will be reported for exempted units, units never rented, occupied market units and vacant market units. The percentage attained will be provided for overall set aside and overall occupancy. When apparent noncompliance with an applicable income category, demographic category or special set aside is observed, the date of the written notification to the owner will be entered on the Development's row of the report and a copy of the written notification uploaded to Florida Housing through its compliance document upload tool.

d. MMRB Certificate of Continuing Program Compliance

The Servicer will collect the Certificate of Continuing Program Compliance (CCPC) for each program report, if applicable to the Development.

e. Additional reports and information will be collected by the Servicer at such other times as Florida Housing or the Servicer, in their discretion, requests.

C. Management review and physical inspection ("Management Review")

The Servicer will conduct a Management Review consisting of a review of tenant files, the administrative procedures of the Management Company, and a physical inspection of the Development. The purpose of the management review and physical inspection is to evaluate management of the Development, to conduct an onsite inspection of the premises, and to provide any information needed by the owner in order to fulfill the compliance requirements.

The units and tenant files to be inspected and examined by the Servicer must be chosen in a manner that will not give owners and management advance notice that any specific unit and/or tenant file will or will not be inspected or examined. However, the Servicer may give an owner and management reasonable notice that the inspection, in general, will occur so that the owner/management may notify all tenants of potential unit inspection and assemble all tenant files for review as further described in section IV.C.2.(a) below.

A follow-up Review may be required, based on the quantity and nature of the resident-file issues found by the Servicer and/or failure to meet National Standards for the Physical Inspection of Real Estate (NSPIRE) during a management review and physical inspection. The Servicer may schedule a follow-up review, onsite or Desk Review, on or before the 120th Day after the response due date provided in the report of the review. The Servicer will re-examine previously-reviewed files containing discrepancies and/or previous physical inspection issues to ensure the owner or Management Company corrected noted discrepancies and issues. The Servicer will also review

additional files and/or inspect additional units to determine whether acceptable procedures are currently being followed. If a Desk Review is performed, all costs of secure shipment or transmittal of the tenant files shall be borne by the Servicer and the physical re-inspection of the property, if applicable, shall be conducted within 10 Days of completion of the Desk Review. When a follow-up physical inspection is conducted first the follow-up Desk Review must be performed within 10 Days of completion of the physical inspection.

1. Frequency and timing of management reviews and physical inspections conducted by the Servicer:

a. Housing Credits

i. When a Development receives competitive Housing Credits and the Development is occupied at the time of carryover or final allocation, whichever occurs first, the Servicer will conduct the initial review:

1) on or before the 180th Day after the placed-in-service date for the last building in the Development; or

2) on or before the 180th Day after final allocation if the final allocation occurs first.

ii. When a Development receives competitive Housing Credits and the Development is not occupied at the time of carryover, the Servicer will conduct the initial review on or before the 180th Day after the placed-in-service date for the last building in the Development.

iii. When a Development receives an allocation of noncompetitive Housing Credits and the Development is financed with local housing authority bonds and has no other funding from Florida Housing programs, the Servicer will conduct the initial review on or before the 180th Day after final allocation.

iv. The Servicer will conduct on-site inspections of all buildings in the Development by the end of the second calendar year following the year the last building in the project is placed in service and, for at least 20% of the project's low-income units, inspect the units and review the low-income certifications, the documentation supporting the certifications, and the rent records for the tenants in those units in accordance with, 26 CFR 1.42- 5(c)(2)(ii)(A), Monitoring compliance with low income housing credit requirements.

v. Subsequent reviews will be conducted within three years of the previous review (whether initial or subsequent) throughout the federal compliance period, and annually throughout the extended use period.

b. SAIL

i. When a Development is occupied at the time of loan closing, the Servicer will conduct the initial review on or before the 180th Day after loan closing.

ii. When a Development is not occupied at the time of loan closing, the Servicer will conduct the initial review on or before the 180th Day after the occupancy of the last SAIL unit,

iii. Subsequent reviews will be conducted within one year of the previous review (whether initial or subsequent) throughout the Term of the Land Use Restriction Agreement including its extensions.

c. HOME Rental

i. When a Development is occupied at the time of loan closing, the Servicer will conduct the initial review no later than twelve months following Project Completion as defined in 24 CFR Section 92.2.

ii. When a Development is not occupied at the time of loan closing, the Servicer will conduct the initial review no later than twelve months following Project Completion as defined in 24 CFR Section 92.2. Subsequent reviews will be conducted within three years of the previous review throughout the federal period of affordability and the extended affordability period.

iii. If there are observed deficiencies for any inspectable item(s), a follow-up site inspection to verify that deficiencies are corrected must occur within 12 months unless such deficiencies are defined as NSPIRE (National Standards for the Physical Inspection of Real Estate) Low or Moderate severity ratings. In lieu of a re-inspection Low or Moderate rated items can be verified as corrected using third party documentation (e.g. work orders, paid invoices, and photographs of completed work). NSPIRE Life Threatening or Severe deficiencies must be corrected within 24 hours. Those Life-Threatening or Severe deficiencies that are corrected during the on-site inspection (e.g. missing or broken electrical switch/outlet wall plates, inoperable smoke detectors) will not require a re-inspection. All other Life-Threatening deficiencies will require a re-inspection within 12 months. NSPIRE is defined in the Code of Federal Regulations, 24 CFR, Part 5, Subpart G and 24 CFR Parts 92 and 93. The final NSPIRE Standards are available at <https://www.hud.gov/reac/npire-standards>.

d. MMRB

i. When a Development is occupied at the time of bond closing, the Servicer will conduct the initial review before the 180th Day after loan closing.

- ii. When a Development is not occupied at the time of bond closing, the Servicer will conduct the initial review on or before the 180th Day after the occupancy of the last MMRB unit.
 - iii. Subsequent reviews will be conducted within one year of the previous review, whether initial or subsequent, throughout the Term of the Land Use Restriction Agreement including its extensions.
- e. CDBG-DR and/or NHTF
 - i. When a Development is occupied at the time of loan closing, the Servicer will conduct the initial review on or before the 180th Day after loan closing.
 - ii. When a Development is not occupied at the time of loan closing, the Servicer will conduct the initial review on or before the 180th Day after the occupancy of the last CDBG-DR unit, or on or before the 180th Day after the occupancy of the last NHTF unit, whichever is the latest.
 - iii. Subsequent reviews will be conducted within one year of the previous review (whether initial or subsequent) throughout the compliance period.
- 2. Management review and physical inspection procedures include the following:
 - a. Physical Inspection of Units

The Servicers must be NSPIRE trained and perform NSPIRE physical inspections of the interior components of a residential unit, common areas and building systems within the building interior, building exterior components and any building systems located outside of the building or unit to evaluate compliance requirements. NSPIRE inspections shall follow HUD's published inspection protocols, including identification and scoring of deficiencies as 'Life-Threatening (LT)', 'Severe (S)', 'Moderate (M)', or 'Low (L)', consistent with HUD's NSPIRE Dictionary of Deficiency Definitions. The Servicer will randomly select and inspect a Development's units to determine if those units meet the HUD National Standards for the Physical Inspection of Real Estate. When a violation report or notice was issued to the owner of a Housing Credit Development by a State or local government unit responsible for making local health, safety, or building code inspections, the Servicer will review the summary of the violation report that the owner is required by 24 CFR 1.42-5 (c) (1)(vi) to prepare. If the violation remains uncorrected the Servicer will personally observe the violation and include the violation in the report of the management review and physical inspection. If any NSPIRE Life-Threatening (LT) deficiency is observed, the Servicer must require correction within 24 hours, with date-stamped photographic proof of correction and written certification from the owner/agent. Severe (S) deficiencies must be corrected within 30 calendar days; Moderate (M) and Low (L) deficiencies must be corrected within 60 calendar days unless otherwise required by local code. The Servicer will notify management to provide notice, pursuant to s. 83.53, F.S., to all tenants regarding the possibility for unit inspections.

Physical Inspection includes:

- i. Inspection of the buildings including unit features, including but not limited to green, energy, and accessibility features, Development amenities, and the grounds (including landscaping) to identify any deferred maintenance and evaluate overall appearance and compliance with LURA and EUA requirements and indicate findings on the Management Review and Physical Inspection Summary. Findings must be documented with clear photo evidence, NSPIRE deficiency code, location, and sufficient narrative description.
- ii. Inspection of the building including unit features, including but not limited to green, energy, and accessibility features to ensure that any features replaced during maintenance are comparable or updated per the function of the original feature.
- iii. The frequency of compliance monitoring and sample selection for MMRB, SAIL and Housing Credits shall be as follows:

1) Throughout the first 15 years, the Servicer shall conduct a management review and physical inspection each year for MMRB and/or SAIL; and for Housing Credits, conduct a management review and physical inspection once during each three-year cycle. During the course of a three-year period, whether MMRB, SAIL or Housing Credits, the Servicer shall examine 20% of the low-income tenant files and physically inspect 20% of the units. The tenant files and units may be randomly selected in separate groups or as a single random selection of the same files as units.

2) Beginning January 1 of the 16th year, the Servicer shall perform a review once per year through the expiration of the Extended Low-Income Housing Agreement or the Land Use Restriction Agreement, whichever is of the longest duration. The number of units requiring inspection and files requiring review is in accordance with Table A.

TABLE A MMRB, SAIL AND HOUSING CREDIT UNIT INSPECTION AND FILE REVIEW	
# of set-aside units	# of set-aside units to be inspected and files to be reviewed
1 – 50	6 random
51 – 200	10 random
200 - 350	12 random
350 +	15 random

3) HOME Rental, and/or NHTF and CDBG-DR – For HOME, and /or NHTF and/or CDBG-DR set-aside units, the number of units requiring inspection and files requiring review is in accordance with Table B:

TABLE B HOME, NHTF, CDBG-DR UNIT INSPECTION AND FILE REVIEW	
# of HOME, NHTF or CDBG-DR set-aside units	# of HOME or NHTF or CDBG-DR set-aside units to be inspected and files reviewed
1 - 4	100%
More than 4	At least 20% of units set-aside for HOME, CDBG-DR and/or NHTF in each building where a HOME, CDBG-DR and/or NHTF set-aside unit is located, but no fewer than 4 units in each Development including at least 1 HOME, CDBG-DR and/or NHTF set-aside unit in each building where a HOME, CDBG-DR and/or NHTF set-aside unit is located.

4) When a Development is funded by programs to which both Table A and Table B apply, the most restrictive sample size will be selected.

5) When a file review is conducted as a Desk Review, the physical inspection will be conducted within 10 Days of the Desk Review. When the physical inspection is conducted first, the Desk Review will be performed within 10 Days of the physical inspection.

6) When calculation of the percentage of units to inspect or files to review results in a fraction of a unit, that unit or file will be included in those that will be inspected or reviewed. Those selected will be dispersed throughout the Development with no more than one unit or file selected per building, until one unit or file has been selected from each building, before selecting a second unit or file from any building.

b. Tenant Files and Records

i. File examination

1) Review the sequence of the certification procedure to ensure that no person or family occupies a Development unit prior to being properly certified.

2) Within each file, the Servicer will examine and confirm the following:

a) Application(s) - check for completeness and inclusion of total income from all sources, including assets, and household student status.

b) Verification(s) of income and assets- examine for completeness, timeliness and compare to the application and the most-recent Tenant Income Certification for agreement.

c) Lease (initial and current when required) - examine to ensure that all occupants of the unit are listed, the lease is fully executed, the terms of the lease meet LURA and/or EUA requirements. Confirm that the current rent for the unit does not exceed applicable rent limits, if any and that appropriate utility allowances are used. Identify lease provisions prohibited by HOME, NHTF or CDBG-DR.

d) Tenant income certification (initial and/or current) - check for completeness and confirm the amount of income documented in the tenant file. Determine whether household is qualified under the appropriate program income limit.

e) Confirm composition of each household, related student status, elderly status, etc., as applicable.

f) Obtain the current number of vacant units and vacancy percentage. If the percentage of vacancy is 10% or higher, obtain written explanation and improvement plan for addressing the vacancy issue.

iii. When a Development receiving HOME, NHTF or CDBG-DR funds has tenants that may be displaced as a result of the construction or rehabilitation of the Development, at a minimum, review for compliance with the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970, as amended, 42 U.S.C. § 4601 *et seq.* and implemented at 49 CFR Part 24 with further guidance provided by HUD Handbook 1378; and the requirements of Section 104(d) of Title I of the Housing and Community Development Act of 1974, as amended and implemented at 24 CFR Part 42 and 24 CFR 92.353 and 93.352:

1) The Development's Anti-Displacement Policy;

2) Evidence that the owner provided advisory services to the tenants including notices; information booklets, explanation of assistance, referrals to social services, counseling and advice under the Fair Housing Act; and,

3) Payments to eligible tenants for the cost of temporary relocation, reimbursement of moving and related expenses; and the cost of replacement housing assistance as applicable.

c. The administrative procedures of the owner and/or Management Company.

The Servicer will review the following administrative procedures and indicate findings on the Management Review and Physical Inspection Summary:

- i. Maintenance program
 - ii. Security Program
 - iii. Organization and supervision
 - iv. Training
 - v. Advertising and Affirmative Fair Marketing
 - vi. Tenant programs and services to include, but shall not be limited to, verification and review of executed memorandums of understanding, addendums, diplomas, and any certifications, as applicable.
 - vii. Confirm that the owner is participating in the statewide Housing Locator System and in the Corporation's Lowering Barriers to Entry requirements, as required by the Corporation.
 - viii. Confirm that all terms and conditions of the regulatory agreement are being met.
- d. Transmittal of management review and physical inspection summary and narrative comments.

At the conclusion of the physical inspection, the Servicer will present to the owner and management company representative a list of NSPIRE Life-threatening and Severe deficiencies that must be corrected within 24 hours of the inspection, if any. The Servicer will prepare and send the Management Review to the owner, Management Company representative, onsite manager, Florida Housing and, if the Development is funded under MMRB, the Trustee and the Servicer for the credit enhancer. The Servicer will require the owner to acknowledge to the Servicer the receipt of the Management Review within 10 Days from the date the Management Review was sent to the owner and respond in writing to the Servicer and Florida Housing within 30 Days from the date the Management Review was sent. The Servicer will collect supporting material sufficient to document correction of items noted in the narrative comments. The Servicer will review the response to determine whether all discrepancies have been satisfactorily corrected and follow-up with the owner or Management Company representative until resolved. If a response has not been received by the due date, the Servicer will follow up with the owner and Management Company until the response is received. The Servicer may, upon the owner's request, provide an additional response period. The expiration of any additional response period may not extend beyond 90 days from the date of initial written noncompliance notification to the owner.

e. Close-Out Letters

The Servicer will provide the owner, Management Company and Florida Housing with a close-out letter when all discrepancies have been corrected satisfactorily, unless otherwise directed by Florida Housing.

f. Correspondence

The Servicer will provide to Florida Housing a copy of any correspondence originated by the Servicer that relates to any monitored Development within 30 Days of the correspondence's origination.

D. Noncompliance

The Servicer will provide a report summarizing outstanding noncompliance items for Developments in their portfolio pursuant to the schedule of report dates provided by Florida Housing at the beginning of each year and as amended from time to time. At the request of Florida Housing, the Servicer must inquire into or investigate a noncompliance issue and notify Florida Housing of the findings.

1. Housing Credits

a. For Housing Credit Developments that are within the 15-year federal compliance period, the Servicer will notify the owner in writing, with a copy to Florida Housing and the Management Company, of noncompliance noted as a result of a management review and physical inspection or program report. The notice will provide the owner with a 30-day initial response period and advise the owner that Florida Housing, at the expiration of the 90-day correction period, will file IRS form 8823 with the Internal Revenue Service for noncompliance, even when corrected. The Servicer will provide Florida Housing with the necessary information and/or documentation needed for filing IRS form 8823.

b. For Housing Credit Developments that are beyond the initial 15-year federal compliance period, the Servicer will notify the owner in writing, with a copy to Florida Housing and the Management Company, of noncompliance noted as a result of a management review and physical inspection or program report. The notice will provide the owner with a 30-day initial response period.

2. SAIL, MMRB, HOME Rental, NHTF, and CDBG-DR

The Servicer will notify the owner in writing, with a copy to Florida Housing and the Management Company, of noncompliance noted as a result of a management review and physical inspection or program report. The notice will provide the owner with a 30-day initial response period.

The Servicer may, upon the owner's request, provide an additional response period. The expiration of any additional response period may not extend beyond 90 days from the date of initial noncompliance notification to the owner.

E. Additional Duties of the Servicer

1. Daily availability to the owner, Management Company personnel, and onsite staff to answer any questions concerning compliance.

2. Provide Florida Housing with a monthly management review and physical inspection schedule, in an electronic format, seven days prior to the 1st day of each month. The schedule will include the Development name, HFA Key number for the Development, date of the review, review type (initial, annual or triennial), program for which the management review and physical inspection is being performed, number of units to be inspected, number of files to be reviewed and name or initials of staff member(s) conducting the review. Note in a separate comments column when a file review will be performed as a Desk Review and provide in a comments column the date the physical inspection will be conducted.

3. Collect and submit electronic copies to Florida Housing's Compliance staff, copies of Form 8609 Part II First Year Certification, submitted to the IRS, from owners receiving an allocation of Housing Credits from Florida Housing. Notify Florida Housing annually of Housing Credit Developments in their portfolio that are transitioning to year sixteen.

4. Conduct an additional management review and/or physical inspection when deemed necessary by the Servicer or Florida Housing following a change in Development ownership structure and/or Management Company.

5. Additional training to instruct owner and/or Management Company personnel on compliance requirements shall be conducted as deemed necessary by the Servicer or Florida Housing.

6. Participate in and/or conduct regional training workshops and/or webinars for owners and Management Company personnel to ensure compliance with Federal laws and regulations, State laws, and Florida Housing rules concerning program requirements. Workshops and/or webinars are to be conducted at least quarterly.

V. Additional housing programs may be implemented during the course of the Contract resulting from this RFQ. The Respondent agrees to work with Florida Housing to ensure there are successful credit underwriting, loan servicing, and compliance monitoring measures put in place for those new initiatives.

VI. Personally Identifiable Information (PII) and Information Security

The laws of the State of Florida, including the State Cybersecurity Act, s. 282.318, F.S. (2021) and Florida Cybersecurity Standards, Chapter 60GG-2, F.A.C. (collectively, "Florida Law") and the Gramm-Leach-Bliley Act of 1999 (15 U.S.C. § 6801 et seq.) and the regulations promulgated

thereunder, including, without limitation, the Interagency Guidelines Establishing Standards for Safeguarding Customer Information (collectively, the “Act”), impose various requirements regarding consumer privacy as well as the confidentiality, integrity, and accuracy of consumer information.

A. Definitions.

For the purposes of this section:

1. “Customer Data” means any and all data and information of any kind or nature submitted to Contractor by Florida Housing, or received by Contractor on behalf of Florida Housing, related to a natural person. Customer Data includes but is not limited to “nonpublic personal information” (as defined in the Act) necessary for Contractor to provide the Services, as well as “personal information” or “nonpublic information” as defined under Florida Law. Florida Housing shall remain the sole and exclusive owner of all Customer Data, regardless of whether such data is maintained on paper, magnetic tape, magnetic disk, personal computing devices (including but not limited to computers, tablets, smartphones, etc.), cloud computing systems maintained by Contractor or others on service provider’s behalf, or any other storage or processing device.

2. “Confidential Information” shall mean all information designated by Florida Housing as confidential, including all Customer Data, and all information or data, whether marked or designated as confidential, concerning or related to Florida Housing’s products, (including the discovery, invention, research, improvement, development, manufacture, or sale thereof), processes, or general business operations (including sales costs, profits, pricing methods, organization, and employee lists), and any information obtained through access to any of Florida Housing’s information systems, including, without limitation, networks, network services, computers, computer systems and communications systems (collectively, the “Information Systems”), which, if not otherwise described above, is of such a nature that a reasonable person would believe it to be confidential or proprietary. Confidential Information, other than Customer Data (which shall always remain confidential), shall not include: (a) information which is or becomes publicly available (other than by Contractor or such other party having the obligation of confidentiality) without breach of this Contract; (b) information independently developed by Contractor; or (c) information received from a third party not under a confidentiality obligation to Florida Housing.

B. Use of Confidential Information. Contractor shall not use, retain, copy, sell, transfer, publish, disclose, display, or otherwise make any of Florida Housing’s Confidential Information available to any third party without the prior written consent of Florida Housing. Contractor shall hold the Confidential Information in confidence and shall not disclose or use such Confidential Information other than for the purposes contemplated by the contract resulting from this solicitation or in compliance with the requirements set forth in the Act, and/or Florida Law, and Contractor shall instruct all of its directors, officers, employees, agents, contractors and financial, legal and other advisors to whom it provides the Confidential Information (the “Representatives”) to use the same care and discretion with respect to the Confidential Information that Contractor requires with respect to its own most confidential

information, but in no event less than a reasonable standard of care, including the utilization of security devices or procedures designed to prevent unauthorized access to and processing of the Confidential Information. Contractor shall instruct its Representatives of its confidentiality obligations hereunder and not to attempt to circumvent any such security procedures and devices. Additionally, Contractor shall require that each of its Representatives agree to all of the same restrictions and conditions concerning Confidential Information to which Contractor is bound in any resulting contract. All Confidential Information shall be distributed only to persons having a need to know such information to perform their duties in conjunction with the contract. Unless otherwise agreed in writing, the obligations set forth in this section shall continue perpetually and survive the termination or expiration of the contract for any reason. Further, upon request by Florida Housing or upon termination of the contract, Contractor shall deliver to Florida Housing any Confidential Information in its possession and destroy any copies of Confidential Information in Contractor's files, unless otherwise required under operation of law.

C. Access to Information Systems. Access, if any, to Florida Housing's Information Systems will be granted solely to perform the Services under the contract and is limited to those specific Information Systems, time periods and personnel as are separately agreed to by Florida Housing and Contractor from time to time. Florida Housing may require the Representatives to sign individual agreements prior to accessing Florida Housing's Information Systems. Use of Florida Housing's Information Systems during other time periods or by individuals not authorized by Florida Housing is expressly prohibited. Access is subject to Florida Housing business control and information protection policies, standards and guidelines as may be modified from time to time. Use of any other of Florida Housing's Information Systems is expressly prohibited. This prohibition applies even when an Information System that Contractor is authorized to access serves as a gateway to other Information Systems outside Contractor's scope of authorization. Contractor agrees to access Information Systems only from specific locations approved for access by Florida Housing. For access outside of Florida Housing's premises, Florida Housing may designate the specific network connections to be used to access Information Systems.

D. Information Security. Contractor shall be responsible for establishing and maintaining an information security program (the "Information Security Program") designed to satisfy all objectives set forth in the Act and Florida Law. The Contractor shall take full responsibility for the security of all Confidential Information in its possession or in the possession of its approved subcontractors and shall hold Florida Housing harmless for any damages or liabilities resulting from the unauthorized disclosure, processing, or loss thereof. At a minimum, Contractor will agree:

1. To implement appropriate technical and organizational measures, including a network firewall and maintaining secure environments that are patched and up-to-date with all appropriate security updates as designated by a relevant authority, to protect Confidential Information against (i) accidental or unlawful destruction or loss, (ii) unauthorized disclosure, access, processing and exfiltration, or theft, in particular where processing involves the transmission of Confidential Information over a network, (iii) alteration, and (iv) all misuse;

2. To implement appropriate procedures to ensure that (i) unauthorized persons will not have access to the data processing equipment used to process the Confidential Information, (ii) any persons it authorizes to have access to the Confidential Information will respect and maintain the confidentiality and security of the Confidential Information, and (iii) the measures and procedures that it uses will be sufficient to comply with all legal requirements applicable to both Florida Housing and Contractor;

3. To implement and maintain safeguards for such PII, in a manner acceptable to Florida Housing, including but not limited to, non-disclosure, use of appropriate technology, security practices, computer access security, data access security, data storage encryption, data transmission encryption, security inspections and audits;

4. To ensure the transmission or exchange of Confidential Information with Florida Housing and/or any other parties shall take place via secure Advanced Encryption Standards (AES), e.g., HTTPS, FTPS, SFTP or equivalent means. All data stored as a part of backup and recovery processes shall be encrypted, using AES;

5. To appropriately destroy Confidential Information based on the format stored upon the expiration of any applicable retention schedules; and

6. To discipline employees that violate the Information Security Program.

E. Information Security Program Monitoring. Upon written request of Florida Housing, Contractor shall provide Florida Housing with viewing access of summaries of all internal and third-party security audits and security test results from the past three years to confirm that Contractor is satisfying its obligations under this Contract, the Act, and Florida Law. Further, during the term of any resulting contract, the following monitoring is required at Contractor's expense:

1. Contractor will provide Florida Housing annual written assurances that Contractor's Information Security Program continues to meet the requirements of this Contract.

2. Contractor will provide Florida Housing, on an annual basis, viewing access to copies of all audits of Contractor's internal controls to protect Confidential Information, Contractor's security program, Contractor's reviews to protect Confidential Information, and Contractor's business continuity program. Such audits may be performed by Contractor or Contractor's independent external auditors.

3. Each report prepared in connection with the audits required in this section shall contain Contractor's management response to any noted exceptions, together with appropriate target dates for completion of required or planned changes. In the event Florida Housing's review of any of the above audits raises issues concerning Contractor's continued compliance with this Contract or the requirements set forth in the Act and/or Florida Law, Florida Housing shall give written notice to Contractor of such issues. Within 30 days from the date of Florida Housing's initial written notification to Contractor, the parties shall agree upon a date by which the issues will be resolved. The parties will use

their best efforts to resolve the issues, correct any problem, or make appropriate changes to the Contract that do not materially alter the original obligations of the parties. In the event such issues are not resolved before the agreed upon date, the contract, at Florida Housing's sole option, may be terminated, and any advance payments of fees under the contract will be prorated as of the termination date and promptly returned by Contractor to Florida Housing. No termination penalty shall be paid by either party.

F. Unauthorized Disclosure. Contractor shall (a) immediately notify Florida Housing of any actual or suspected unauthorized access to, processing, use, or disclosure of the Confidential Information not authorized by the terms of this Contract, (b) estimate the disclosure's effect on consumers, Florida Housing, and the confidentiality, integrity, and availability of the Confidential Information, including the date(s), nature of the incident, types of information involved, and number of individuals potentially affected by unauthorized access or processing of Confidential Information, (c) comply with Florida Housing's requests for assistance in responding to such incident, (d) specify all timelines and corrective actions taken or planned to be taken by Contractor to address this incident and prevent future similar incidents, and (e) otherwise abide by provisions set forth in s. 501.171, F.S.. The parties mutually agree to initiate immediate changes in security procedures and requirements in the event of such unauthorized access. Upon the occurrence of any actual or suspected unauthorized access to or use or disclosure of the Confidential Information described in clause (a) above which reasonably may be anticipated to have a material adverse effect on Florida Housing's reputation or business, Florida Housing, at its sole option, may immediately terminate the Contract upon notice to Contractor, and any advance payment of fees under the Contract will be prorated as of the termination date and promptly returned by Contractor to Florida Housing. No termination penalty shall be paid by either party.

G. Access to Premises. For the sole purpose of reviewing Contractor's security policies and procedures, Contractor shall grant Florida Housing access to Contractor's premises from time to time during regular business hours upon reasonable notice to Contractor from Florida Housing. Florida Housing shall hold in confidence and shall promptly return or destroy all information contained in or derived from Contractor's policies and procedures and shall not use any such information except for the sole purpose of ensuring Contractor's compliance with the terms of this Contract.

H. Regulatory Oversight. Contractor acknowledges that Florida Housing is regulated by certain regulatory authorities (the "Regulators"), that the Regulators have examination oversight over Florida Housing, and that the Regulators have authority to examine the operations performed by Contractor on behalf of Florida Housing. Contractor will cooperate fully with Florida Housing in responding to inquiries made to Florida Housing by Regulators. In the event a Regulator determines corrective measures are required to meet the requirements of the Act and/or Florida Law, Contractor and Florida Housing will use their best efforts to modify the Contract to comply with such Regulator's requirements. In the event a Regulator formally objects to the relationship between Contractor and Florida Housing and such objection cannot be remedied, the Contract shall be deemed terminated and (i) the parties will mutually agree to an orderly conversion of the Services to another provider of similar services; (ii) all payments made in advance under the contract shall be prorated as of the termination

date and promptly returned by Contractor to Florida Housing; and (iii) no termination penalty shall be paid by either party.

I. Business Resumption and Contingency Plans. Contractor shall maintain in place a complete disaster recovery and business resumption plan sufficient to satisfy all standards and requirements set forth in the Act and Florida Law. Throughout the term of the contract, Contractor will maintain recovery services that are substantially equivalent to or better than those that are in effect as of the Effective Date of the contract. Contractor will provide to Florida Housing copies of its disaster recovery and business resumption plan and any test results pertaining thereto upon request by Florida Housing.

J. Insurance. Contractor shall provide Florida Housing with insurance information for stand-alone cyber liability coverage, including the limits available and retention levels. If Contractor does not carry stand-alone cyber liability coverage, Contractor must be prepared to indemnify Florida Housing for costs related to notification, legal fees, judgments, settlements, forensic experts, public relations efforts, and loss of any business income related to the resulting contract.

K. Certificate of Insurance and Coverage Continuity. Respondents selected by the Board and awarded a Contract must have the insurance agent (or the insuring company) provide coverage recording Florida Housing as a certificate holder and submit a copy of the Certificate of Insurance to Florida Housing. Such certificate must be issued before each policy inception date to provide evidence of uninterrupted coverage. Where a policy has a "continuous" term (i.e., no fixed expiration date), the certificate must be issued annually on the policy date. Respondents selected by the Board and awarded a Contract must obtain the insurer's agreement to provide Florida Housing a minimum of 30 days written notice in the event the insurer cancels or refuses to renew coverage for any reason or if the insurer places any more restrictive terms as a condition for renewal or if there is a reduction in coverage. If a Respondent selected by the Board and awarded a Contract anticipates or experiences an interruption in coverage, it will immediately report such occurrence in writing to Florida Housing. A lapse in coverage will constitute a violation of the Contract and will constitute a Default under the Contract.

VII. Respondents selected by the Board and awarded a Contract will promptly report to Florida Housing whenever the Respondent has credible evidence that a principal, employee, agent, officer, or subcontractor of the Respondent has committed a violation of the civil False Claims Act or a violation of Federal criminal law involving fraud, conflict of interest, bribery, embezzlement or gratuity violations in connection with the award, performance, or closeout of a contract, or any related subcontract that directly or indirectly involves the servicing of Florida Housing funds.

VIII. Respondents selected by the Board and awarded a Contract will confirm that they have established and maintain a Red Flag Plan.

IX. Respondents selected by the Board and awarded a Contract must maintain at all times during the existence of the Contract at its own expense, blanket fidelity insurance and errors and omissions insurance covering the Respondent's officers and employees and other persons acting on behalf of the Respondent relating to the Respondent's performance of the Contract. No

provisions of this section requiring the Respondent to maintain insurance coverage shall operate to diminish, restrict, or otherwise limit the Respondent responsibilities and obligations as set forth in the Contract. The amount of coverage of such policies will be at least equal to the coverage that would be required by Fannie Mae with respect to the Respondent if the Respondent were servicing mortgage Loans for Fannie Mae relating to the Respondent's performance of its obligations under the Contract. If the Respondent is required by any federal or state government agency to maintain a higher amount of such coverage, the Respondent will maintain such higher amount. All such policies of insurance will be placed with a carrier rated at least "A-" by A.M. Best & Co., with a financial size category of at least FSC VI and will be issued by an insurance company, with coverage satisfactory to Florida Housing and will name Florida Housing as the insured under said policies. The Respondent's blanket fidelity insurance coverage may contain a deductible clause for any amount up to the greater of \$100,000 or 5% of the bond's face amount. The Respondent's errors and omissions coverage may contain a deductible clause for any amount up to the greater of \$100,000 or 5% of the policy's face amount.

SECTION FIVE

CERTIFICATION

Do not reproduce the language of Section Five in the Response. By inclusion and execution of the statement provided in Section Six of this RFQ, each Respondent certifies that:

A. The Respondent submits this Response without prior understanding, agreement, or connection with any person or entity submitting a separate Response for the same services. However, any agreement with a person or entity with whom the Response is jointly filed and such joint filing is made clear on the face of the Response will be an exception so long as the Response is in all respects fair and without collusion or fraud.

B. Any material submitted in response to this RFQ is a public record pursuant to Ch. 119, F.S., and subject to examination upon request, but only after Florida Housing provides a notice of decision pursuant to s. 120.57(3), F.S., or within 30 days after the Response is opened, whichever is earlier.

C. The Respondent, if awarded a contract under this RFQ, will comply with Section 420.512(5), F.S. For the purpose of s. 420.512(5), F.S., "Prohibited Business Solicitation Communications" is defined by s. 420.503(34), F.S.

D. The Respondent further affirms it is in compliance with s. 420.512(5)(c), F.S.

E. The Respondent is in compliance with s. 287.133(2)(a), F.S.

F. The Respondent is in compliance with s. 448.095, F.S.

G. The Respondent understands and agrees to cooperate with any audits conducted in accordance with the provisions set forth in s.20.055(5), F.S.

H. The Respondent attests, under penalty of perjury, that it does not meet any of the criteria in s. 287.138(2)(a) – (c), F.S.

I. The Respondent attests, under penalty of perjury, that it does not use coercion for labor or services as defined s. 787.06, F.S.

J. Pursuant to s. 119.0701(2)(b), F.S., the Respondent, if awarded a contract under this RFQ, will be required to comply with public records laws, specifically to:

1. Keep and maintain public records required by Florida Housing to perform the service.
2. Upon request from Florida Housing's custodian of public records, provide Florida Housing with a copy of the requested records or allow the records to be inspected or copied within a reasonable time at a cost that does not exceed the cost provided in this chapter or as otherwise provided by law.
3. Ensure that public records that are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of the contract term and following completion of the contract if the contractor does not transfer the records to Florida Housing.
4. Upon completion of the contract, transfer, at no cost, to Florida Housing all public records in possession of the contractor or keep and maintain public records required by Florida Housing to perform the service. If the contractor transfers all public records to Florida Housing upon completion of the contract, the contractor shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. If the contractor keeps and maintains public records upon completion of the contract, the contractor shall meet all applicable requirements for retaining public records. All records stored electronically must be provided to Florida Housing, upon request from Florida Housing's custodian of public records, in a format that is compatible with Florida Housing's information technology systems.

If the Contractor has questions regarding the application of Chapter 119, Florida Statutes, to the Contractor's duty to provide public records relating to this contract, contact the Corporation Clerk at:

Corporation Clerk
227 N. Bronough Street, Suite 5000
Tallahassee, Florida 32301-1329
Phone: 850.488.4197
E-mail: Corporation.Clerk@floridahousing.org

Notwithstanding anything contained herein to the contrary, the provisions and requirements of this paragraph will only apply if and when the Contractor is acting on behalf of Florida Housing.

K. The Respondent acknowledges that if awarded a contract it will be prohibited from engaging in activities in connection with services related to Florida Housing transactions that produce direct or indirect financial gain for the Respondent other than for the compensation agreed upon in the contract that results from this RFQ, unless that Respondent has Florida Housing's written consent after Florida Housing has been fully informed of such activities in writing.

L. The Respondent acknowledges that if awarded a contract it will be prohibited from engaging in any actual, apparent, or potential conflict of interest. Should any such actual, apparent, or potential conflict of interest come into being subsequent to the effective date of the contract and prior to the conclusion of the contract, the Respondent will provide written notification (Notice of Conflict of Interest) to Florida Housing's Contract Administrator within 10 working days for review by Florida Housing's Executive Director in consultation with the Ethics Officer. If the Respondent is found to be in non-compliance with this provision, any compensation received in connection with this contract will be subject to forfeiture to Florida Housing.

M. The Respondent, in submitting this Response, acknowledges and agrees that the terms and conditions of this RFQ, as well as any modifications thereto, will be incorporated into any contract offered as a result of this RFQ.

N. CERTIFICATION STATEMENT:

FAILURE TO INCLUDE THE CERTIFICATION STATEMENT LOCATED IN SECTION SIX OF THIS RFQ BEARING AN ORIGINAL SIGNATURE WILL RESULT IN REJECTION OF THE RESPONSE.

SECTION SIX INFORMATION TO BE PROVIDED IN RESPONSE

In providing the following information, restate each item and sub-item (with its letter and number), limit your Response to one attachment. Responses to the items must be included immediately after the restated items without any reference to any appendix.

A. COVER LETTER

Each proposal must be accompanied by a cover letter that contains a general statement of the purpose of submission and includes the following information.

1. The name, job title, address, office and cellular telephone numbers, and e-mail address of a primary contact person, who will be responsible for day-to-day contact with Florida Housing, and any backup personnel who would be accessible if the primary contact cannot be reached.

2. Legal business status (individual, partnership, corporation, etc.) and address and telephone number of the Respondent.

B. GENERAL INFORMATION

1. Provide documentation to show that the Respondent is authorized to do business in the State of Florida.

2. Provide a description of the Respondent that includes the length of time the Respondent has been in business, including the length of time providing the services described herein, and a discussion of any changes in its senior management in the last two years.

3. Describe the Respondent's workplan to provide the services requested in Section Four of this RFQ immediately upon award of the contract. Within these descriptions, provide staff training, experience, and/or certifications regarding the services outlined in this RFQ.

4. Florida Housing expects that the Respondent will have an office located in the State of Florida. If the Respondent does not anticipate being able to comply with this requirement, a written explanation should be submitted with its Response to this RFQ and describe Respondent's capability to perform the services described by this RFQ within the State of Florida.

5. Provide information about availability of staff and other resources, including subcontractors that will be needed to complete the services requested in Section Four of this RFQ. List the names of all the Respondent's personnel who will be assigned to perform the services requested in this RFQ and describe their qualifications and experience. For each person listed, please specify if they will be involved with Credit Underwriting, Construction Loan Servicing, Permanent Loan Servicing and/or Compliance Monitoring. NOTE: Respondents must have a minimum of five years of experience in order to be assigned to a resulting contract.

6. Provide a copy of the declaration page of proof of blanket fidelity insurance and errors and omissions insurance which includes the following:

- a. Name of carrier and policy number;
- b. Effective date of insurance;
- c. Policy exclusions, if any;
- d. Current coverage amounts;
- e. Staff and others acting on behalf of the Respondent who are covered; and
- f. Type of coverage.

7. If the Respondent has not entered into a contract with Florida Housing within the last five years, provide a copy of the most recent tax return or a copy of the most recent audited financial statements.

8. Provide an attestation report, in accordance with the Statement on Standards for Attestation Engagements No. 18 AT-C Section 320, Reporting on an Examination of Controls at a Service Organization Relevant to User Entities' Internal Control Over Financial Reporting (SSAE 18), as issued by the AICPA, or superseding guidance, addressing controls at the organization, controls at inclusive subservice organizations, if applicable, and complementary

subservice organization controls at carved-out subservice organizations, if applicable, supporting the organization's processing relevant to Florida Housing's financial reporting. This report, at a minimum a SOC 1 Type 2 report, should be performed at least annually covering a period of 12 months. The report must cover, at a minimum, 6 months of the Florida Housing fiscal year (January through December) being audited. If the entire Florida Housing fiscal year is not covered by the report, a bridge letter for the period not covered must be provided. A copy of the report, and bridge letter when required, should be provided to Florida Housing's contracts administrator upon issuance but must be provided no later than the last day of the first quarter of each calendar year.

9. Describe the Respondent's Business Continuity Plan, including how often the plan is updated and tested.

C. FEES

In Table I below, provide the proposed fees to be charged in connection with the services described in Section Four of this RFQ for the following development. Fees proposed shall not include any caveat language and must incorporate all charges relating to the services required under the contract and all out-of-pocket expenses, such as telephone, postage and shipping, printing and/or copy costs, and travel, if any. No costs will be reimbursed under the contract.

NOTE: Any Response received with modifications made to Table I or containing use of caveat language with respect to fees will result in this section being deemed non-responsive.

Number of Units	100
Development Type	Mid-Rise (4 Stories)
Number of Buildings	1
Location	Orange County
Florida Housing Funding Sources	SAIL, MMRB, 4% Housing Credits, NHTF

TABLE I Fees	
A. Credit Underwriting	\$
B. Construction Loan Servicing	\$
C. Permanent Loan Servicing	\$
D. Compliance Monitoring	\$
TOTAL (A+B+C+D)	\$

FINAL FEE SCHEDULE WILL BE SUBJECT TO NEGOTIATION.

D. DRUG-FREE WORKPLACE

If the Respondent has implemented a drug-free workplace program, the Respondent must submit the following certification indicating that it meets all of the requirements of s. 287.087, F.S.:

I hereby certify on behalf of the Respondent, under the terms of RFQ 2025-04, that the Respondent has implemented a drug-free workplace program pursuant to s. 287.087, F.S.

Authorized Signature: _____

Print Name: _____

Print Title: _____

E. MINORITY BUSINESS ENTERPRISE

If the Respondent is a minority business enterprise as defined in Section 288.703, F.S., the Respondent must submit the following certification:

I hereby certify on behalf of the Respondent, under the terms of RFQ 2025-04, that the Respondent is a “minority business enterprise” as defined in s. 288.703(3), F.S.

Authorized Signature: _____

Print Name: _____

Print Title: _____

F. CERTIFICATION (Mandatory Item)

THE FOLLOWING WILL BE REPEATED IN THE RESPONDENT’S RESPONSE AND SIGNED BY AN INDIVIDUAL AUTHORIZED TO BIND THE RESPONDENT. THIS IS A MANDATORY ITEM. FAILURE TO INCLUDE THE CERTIFICATION STATEMENT BEARING AN ORIGINAL SIGNATURE, EXACTLY AS STATED AND WITHOUT ANY ADDITIONS, DELETIONS OR CAVEAT LANGUAGE, WILL RESULT IN REJECTION OF THE RESPONSE.

“I agree to abide by all conditions of RFQ 2025-04 and certify that all information provided in this Response is true and correct, that I am authorized to sign this Response as the Respondent and that I am in compliance with all requirements of the RFQ, including but not limited to, the certification requirements stated in Section Five of this RFQ.”

Authorized Signature (Original)

Print Name and Title

SECTION SEVEN EVALUATION PROCESS

The individual Committee members will independently evaluate the Responses by reviewing the answers to each of the items identified in Section Six of this RFQ and assigning points up to the maximum points allowed for each item. The points available for items in Section Six are to be evaluated are as follows:

<u>Item Reference</u>	<u>Maximum Points</u>
B.1. General Information.....	5
B.2. General Information.....	15
B.3. General Information.....	30
B.5. General Information.....	15
B.6. General Information.....	5
B.7. General Information.....	5
B.8. General Information.....	5
B.9. General Information.....	10
C. Fees	10
Total Points Available.....	100

In the event of a tie, Florida Housing will give preference in the award process to the Response certifying a drug-free workplace has been implemented in accordance with s. 287.087, F.S. If a tie continues to exist, Florida Housing will give preference to minority business enterprises as defined in s. 288.703, F.S.

For Item C, Fees, the Respondent with the lowest proposed total fee will receive the maximum allowable points (10 points). The remaining respondents will receive a percentage of the maximum points, rounded to the nearest whole number, based on the following formula:

Lowest Proposed Total Fee	=	%	x	10	=	Total Points Awarded for “Fees” (Rounded to the nearest whole number)
÷ Current Respondent’s Proposed Total Fee						

The Committee will conduct one or more public meetings during which members will discuss their evaluations and develop a recommendation or series of recommendations to the Board. The Committee’s recommendation will be based on the cumulative scoring and information gathered from the non-scored items. The Board may use the Responses, the Committee’s scoring, the non-scored items in the Responses, any other information or recommendation provided by the

Committee or staff, and any other information the Board deems relevant in its selection of Respondents to whom to award a contract.¹

SECTION EIGHT

AWARD PROCESS

Florida Housing will provide notice of its decision, or intended decision, for this RFQ on Florida Housing's Website the next business day after the applicable Board vote. After posting, an unsuccessful applicant may file a notice of protest and a formal written protest in accordance with s. 120.57(3), F.S. Failure to file a protest within the time prescribed in s. 120.57(3), F.S. or failure to post the bond or other security required by law within the time allowed for filing a bond will constitute a waiver of proceedings under Ch. 120, F.S.

¹ Pursuant to s. 287.05701 F.S., Florida Housing may not request documentation of or consider a vendor's social, political, or ideological interest when determining if the vendor is a responsible vendor. Additionally, Florida Housing may not give preference to a vendor based on the vendor's social, political, or ideological interests.

ADDENDUM #1

REQUEST FOR QUALIFICATIONS (RFQ) 2025-04

**CREDIT UNDERWRITING, CONSTRUCTION AND PERMANENT LOAN
SERVICING, AND COMPLIANCE MONITORING SERVICES**

FOR

FLORIDA HOUSING FINANCE CORPORATION

September 2, 2025

Item #1

Section Four, Item I.C.20., is hereby deleted in its entirety and is replaced with the following:

20. The Servicer must attend the loan closing for all Florida Housing loans in the format prescribed (either virtually or in-person).

Item #2

Section Four, Item I.C.25., is hereby deleted in its entirety and is replaced with the following:

25. The Servicer will provide summaries for the following headings within the Credit Underwriting reports:
- a. Appraisals;
 - b. Market Studies;
 - c. Environmental Reports
 - d. Soil Test Reports
 - e. Capital Needs Assessments;
 - f. Plan and Cost Analyses; and
 - g. Site Visits.

Item #3

Section Four, Item II.B.2.m., is hereby deleted in its entirety.

Item #4

Section Four, Item III.A.14., is hereby deleted in its entirety and is replaced with the following:

14. Annually, collect from the Borrower (or Owner, as applicable) and submit Form SR-1 and the related audited financial statements in accordance with the SR-1 Financial Reporting Instructions (including exhibits and formatting specifications in effect as of the submission date). Group 1 developments (SAIL, HOME with partial MMRB, RRLP, TCAP, and Supplemental) must submit electronically to the Servicer, as designated by Florida Housing.

Item #5

Section Four, Items IV.B.2,a.i and ii., are hereby deleted in their entirety and is replaced with the following:

- i. Except for a Development that receives an allocation of non-competitive Housing Credits without any Florida Housing issued loans, the initial program report for an occupied Development will be prepared as of the last day of the calendar month during which the loan closing or the execution of the Housing Credits carryover allocation agreement occurs and will be submitted no later than the 15th of the following month. When the Florida Housing Applicant has not yet acquired the Development and/or a ground lease has not yet commenced when execution of the carryover allocation occurs, timing of initial program report preparation and submission will stem from the actual acquisition date or ground lease commencement date,

as applicable. The Servicer will collect a copy of the program report accompanied by copies of executed tenant income certifications for 10% of the certified units.

ii. Except for a Development that receives an allocation of non-competitive Housing Credits without any Florida Housing issued loans, the initial program report for a Development that is not occupied at closing or carryover will be prepared as of the last day of the calendar month during which rental of the initial unit occurred and will be submitted no later than the 15th of the following month. The Servicer will collect a copy of the program report accompanied by copies of executed tenant income certifications for 10% of the certified units.

Item #6

The third paragraph immediately under Section Four, Item IV.C., is hereby deleted in its entirety and is replaced with the following:

A follow-up Review may be required, based on the quantity and nature of the resident-file issues found by the Servicer and/or failure to meet National Standards for the Physical Inspection of Real Estate (NSPIRE) during a management review and physical inspection. The Servicer may schedule a follow-up review, onsite or Desk Review, on or before the 120th Day after the response due date provided in the report of the review. The Servicer will re-examine previously-reviewed files containing discrepancies and/or previous physical inspection issues to ensure the owner or Management Company corrected noted discrepancies and issues. The Servicer will also review additional files and/or inspect additional units to determine whether acceptable procedures are currently being followed. If a Desk Review is performed, all costs of secure shipment or transmittal of the tenant files shall be borne by the Servicer and the physical re-inspection of the property, if applicable, shall be conducted within 15 Days of completion of the Desk Review. When a follow-up physical inspection is conducted first, the follow-up Desk Review must be performed within 15 Days of completion of the physical inspection.

Item #7

Section Four, Item IV.C.2.a.iii.5), is hereby deleted in its entirety and is replaced with the following:

5) When a file review is conducted as a Desk Review, the physical inspection will be conducted within 15 Days of the Desk Review. When the physical inspection is conducted first, the Desk Review will be performed within 15 Days of the physical inspection.

Item #8

Section Six, Item C., is hereby amended to include additional information relating to the proposed scenario:

In Table I below, provide the proposed fees to be charged in connection with the services described in Section Four of this RFQ for the following development. Fees proposed shall not include any caveat language and must incorporate all charges relating to the services required under the contract and all out-of-pocket expenses, such as telephone, postage and shipping, printing and/or copy costs, and travel, if any. No costs will be reimbursed under the contract.

NOTE: Any Response received with modifications made to Table I or containing use of caveat language with respect to fees will result in this section being deemed non-responsive.

Number of Units	100
Category	New Construction
Development Type	Mid-Rise (4 Stories)
Number of Buildings	1
Location	Orange County
Florida Housing Funding Sources	SAIL, MMRB, 4% Housing Credits, NHTF
Construction Period	24 Months
Total Number of Draws	10
Construction Loan Servicing Timeframe for Fee Calculation	1 Year
Permanent Loan Servicing Timeframe for Fee Calculation	1 Year
Compliance Monitoring Timeframe for Fee Calculation	1 Year
Capital Needs Assessment Required?	No

TABLE I Fees	
A. Credit Underwriting	\$
B. Construction Loan Servicing	\$
C. Permanent Loan Servicing	\$
D. Compliance Monitoring	\$
TOTAL (A+B+C+D)	\$

FINAL FEE SCHEDULE WILL BE SUBJECT TO NEGOTIATION.

All other terms and conditions of RFQ 2025-04 remain the same.

To the extent that this Addendum gives rise to a protest, failure to file a protest within the time prescribed in s. 120.57(3), F.S., shall constitute a waiver of proceedings under Ch. 120, F.S.

RFQ 2025-04 - Credit Underwriting, Construction and Permanent Loan Servicing, and Compliance Monitoring Services

		AmeriNat, LLC ★						First Housing Development Corporation of Florida ★						Seltzer Management Group, Inc. ★					
SECTION SIX ITEM REFERENCE	Max Score	Marisa	Kenny	Nicole	Edny	Tracy	Total	Marisa	Kenny	Nicole	Edny	Tracy	Total	Marisa	Kenny	Nicole	Edny	Tracy	Total
B.1 General Information	5	5	5	5	5	5	25	5	5	5	5	5	25	5	5	5	5	5	25
B.2 General Information	15	14	14	13	13	13	67	15	15	15	15	15	75	15	15	14	15	13	72
B.3 General Information	30	27	27	30	30	27	141	27	28	30	30	28	143	27	29	28	30	30	144
B.5 General Information	15	14	14	15	15	15	73	14	13	13	15	15	70	14	13	15	15	15	72
B.6 General Information	5	4	5	5	5	5	24	5	4	5	5	5	24	5	4	5	5	4	23
B.7 General Information	5	5	5	5	5	5	25	5	5	5	5	5	25	5	5	5	5	5	25
B.8 General Information	5	5	5	5	5	5	25	5	5	5	5	5	25	5	5	5	5	5	25
B.9 General Information	10	10	10	6	9	10	45	10	10	10	10	10	50	10	9	8	10	9	46
C. Fees	10	10	10	10	10	10	50	9	9	9	9	9	45	8	8	8	8	8	40
TOTAL POINTS	100	94	95	94	97	95	475	95	94	97	99	97	482	94	93	93	98	94	472
A. Cover Letter	Y/N	Y	Y	Y	Y	Y		Y	Y	Y	Y	Y		Y	Y	Y	Y	Y	
B.4 General Information	Y/N	Y	Y	Y	Y	Y		Y	Y	Y	Y	Y		Y	Y	Y	Y	Y	
D. Drug-Free Workplace	Y/N	Y	Y	Y	Y	Y		Y	Y	Y	Y	Y		Y	Y	Y	Y	Y	
E. Minority Business Enterprise	Y/N	N	N	N	N	N		N	N	N	N	N		N	N	N	N	N	
F. Certification	Y/N	Y	Y	Y	Y	Y		Y	Y	Y	Y	Y		Y	Y	Y	Y	Y	

REQUEST FOR QUALIFICATIONS (RFQ) 2025-09
FOR INCLUSION IN A POOL OF ENERGY CONSUMPTION MODEL UTILITY
ALLOWANCE ESTIMATE PROVIDERS
for
FLORIDA HOUSING FINANCE CORPORATION

August 18, 2025

SECTION ONE

INTRODUCTION

Florida Housing Finance Corporation (“Florida Housing”) is soliciting competitive, sealed responses from qualified firms to establish a pool of qualified Energy Consumption Model Utility Allowance Estimate Providers (“Provider”) to calculate utility allowance estimates using an Energy Consumption Model for the owners of affordable housing developments participating in Florida Housing programs in accordance with the terms and conditions set forth in this Request for Qualifications (“RFQ”), and any other term and condition in any contract subsequently awarded. Respondents will be selected and determined through Florida Housing’s review of each response, considering the factors identified in this RFQ. Florida Housing expects to select one or more Respondents that propose to provide all of the services specified in this RFQ.

SECTION TWO

DEFINITIONS

For purposes of this document, the following terms will be defined as follows:

“Board”	The Board of Directors of Florida Housing Finance Corporation.
“Committee”	The review committee composed only of employees of Florida Housing that is established pursuant to Rule 67-49.007, Fla. Admin. Code.
“Contractor”	A person or entity providing the professional services described in Section Four of this RFQ.
“Days”	Calendar days, unless otherwise specified.
“Effective Date”	The date the last party signs the contract that is awarded as a result of this RFQ.
“Energy Consumption Model” or “ECM”	The model used to calculate utility allowance estimates as contemplated and permitted by 26 CFR § 1.42-10(b)(4)(ii)(E).
“Energy Consumption Model Utility Allowance Estimate Provider”	A person or entity submitting a response to this RFQ, who is a Licensed Engineer or Qualified Professional approved by Florida Housing, who has the capability in all respects to perform fully the requirements contained in this RFQ as evidenced by the selection of such person or entity by Florida Housing for inclusion in the pool contemplated by this RFQ.

“Florida Housing”	Florida Housing Finance Corporation, a public corporation and public body corporate and politic created by s. 420.504, F.S.
“Housing Credit Program”	The housing credit program administered by Florida Housing pursuant to Section 42 of the Internal Revenue Code and s. 420.5099, F.S., under which Florida Housing is designated the Housing Credit agency for the state of Florida within the meaning of 26 USC § 42 (h)(8)(A) and Rule Chapters 67-21 and 67-48, F.A.C.
“Licensed Engineer”	A person who is licensed to engage in the practice of engineering under Ch. 471, F.S., or a business organization possessing a certificate of authorization to practice engineering under Ch. 471, F.S.
“Qualified Professional”	Any person or entity who is certified through one of the following programs: Certified Energy Manager®, RESNET®, or the Building Performance Institute, Inc.
“Respondent”	Any person or entity who has the capability in all respects to perform fully the requirements contained in this RFQ, and submits a response to this RFQ.
“Response”	The written submission by a Respondent to this RFQ.
“RFQ”	This RFQ, including all exhibits referenced in this document and all other documents incorporated by reference.
“Website”	The Florida Housing Finance Corporation website, the URL of which is www.floridahousing.org .

SECTION THREE

PROCEDURES AND PROVISIONS

A. Respondents will submit their Response to:

<https://www.floridahousing.org/legal/procurements/RFQ-2025-09-Document-Upload>

Florida Housing must receive the entire Response on or before 3:00 p.m., Eastern Time, on September 16, 2025, as Responses will be opened at that time. Any Responses received after the deadline will be considered non-responsive. One complete copy of the response in PDF format is preferred, unless specified otherwise in Section Six below, and the file name ought to contain a reference to both the solicitation number (RFQ 2025-09) and the name of the Respondent. Please note that the site will ask for the Respondent's contact information and the solicitation number

prior to being able to upload the Response. Florida Housing will not accept a mailed or faxed Response.

B. This RFQ does not commit Florida Housing to award a contract to any Respondent or to pay any costs incurred in the preparation or submission of a Response.

C. All services under the contract awarded are to be performed solely by the Contractor, unless subcontracted or assigned with the prior written approval and consent of Florida Housing.

D. Florida Housing reserves the right to:

1. Waive minor deficiencies and informalities;
2. Accept or reject any or all Responses received as a result of this RFQ;
3. Obtain information concerning any or all Respondents from any source;
4. Request an oral interview before the Board from any or all Respondents;
5. Select for contract negotiation or for award a Response other than (or in addition to) that with the highest score in order to serve the best interests of Florida Housing and the public; and
6. Negotiate with the successful Respondent with respect to any additional terms or conditions of the contract.

E. Any interested party may submit any question regarding this RFQ in writing via e-mail to the Contract Administrator at Contract.Admin@floridahousing.org. All questions must be submitted no later than 2:00 p.m., Eastern Time, on August 27, 2025. Phone calls will not be accepted. Florida Housing expects to respond to all questions in writing by 5:00 p.m., Eastern Time, on September 3, 2025. Florida Housing will post a copy of all questions received and the corresponding answers on Florida Housing's website at:

<http://www.floridahousing.org/legal/procurements/request-for-qualifications>.

Only written responses or statements from the Contract Administrator that are posted on our website will bind Florida Housing. No other means of communication, whether oral or written, may be construed as an official response or statement from Florida Housing.

F. Between the release of the solicitation and the end of the 72-hour period following the posting of the notice of intended award, respondents to this solicitation or persons acting on their behalf may not contact any member of Florida Housing's Board of Directors or any Florida Housing employee concerning any aspect of this solicitation, except in writing to the Contract Administrator. Violation of this provision may be grounds for rejecting a response.

G. Any person who wishes to protest the specifications of this RFQ must file a protest in compliance with s. 120.57(3), F.S., and Rule Ch. 28-110, Fla. Admin. Code. Failure to file a protest within the time prescribed in s. 120.57(3), F.S., will constitute a waiver of proceedings under Ch. 120, F.S.

H. The term of the contract will be for three years, subject to satisfactory performance at the sole discretion of Florida Housing. If the parties mutually agree in writing, the contract may be renewed once for an additional three years.

I. Florida Housing is not required to use the services of any selected Contractor or to assign any work to such provider, and may terminate the contract with any selected Contractor without cause and without penalty.

J. Pursuant to Rule 67-49.004, Fla. Admin. Code, Florida Housing may modify the terms of the RFQ at any point prior to the due date for Responses. A notice of such modification will be posted on Florida Housing's Website. Any Respondent will have at least seven days from the date of the posting of the notice of the modification to submit or modify its Response.

K. The terms of this RFQ, and any modifications thereto, will be incorporated into any contract offered as a result of this RFQ. Failure of a successful Respondent to accept these obligations in the final contract may result in cancellation of the award.

L. By submitting a Response to this RFQ, the Respondent agrees that any resulting contracts or agreements (and any attachments, exhibits, and amendments) may be executed and delivered by electronic signatures. As used herein, the term "electronic signatures" shall have the meaning in s. 668.50, F.S.

SECTION FOUR

SCOPE OF SERVICES

Florida Housing is designated the housing credit agency for the state of Florida under 26 USC § 42 (h)(8)(A). When utilities for a residential rental unit are paid directly by the tenant, the inclusion of a utility allowance in the gross rent of rent-restricted units is required by 26 USC § 42(g)(2)(B)(ii). A building owner, in accordance with 26 CFR § 1.42-10(b)(4)(ii)(E), may calculate utility estimates using an energy and water and sewage consumption and analysis model (energy consumption model). The energy consumption model must, at a minimum, take into account specific factors including, but not limited to, unit size, building orientation, design and materials, mechanical systems, appliances, and characteristics of the building location. Florida Housing may approve or disapprove of the energy consumption model utility allowance estimate or require information before permitting its use.

The utility consumption estimates must be calculated by a properly licensed engineer or other qualified professional approved by Florida Housing, which has jurisdiction over owners of developments in Florida that participate in the Housing Credit Program and other affordable housing programs financed by Florida Housing. The qualified professional and the building owner must not be related within the meaning of 26 USC §§ 267(b) or 707(b). 26 CFR § 1.42-10(c)

provides that the building owner must pay for all costs incurred in obtaining the utility estimates and providing the estimates to Florida Housing and the tenants.

Energy Consumption Model Utility Allowance Estimate Providers must:

A. Use an Energy Consumption Model (ECM) that at a minimum, takes into account specific factors including, but not limited to unit size, building orientation, design and materials, mechanical systems, appliances, and characteristics of the building location;

B. Be either a properly Licensed Engineer or a Qualified Professional approved by Florida Housing (together, Qualified Professional) and the Qualified Professional and the building owner must not be related within the meaning of 26 USC §§ 267(b) or 707(b);

C. Otherwise comply in all respects with 26 CFR § 1.42-10(b)(4)(ii)(E), and any other applicable regulations;

D. Execute and submit to the owner the *Certification of Completeness and Accuracy for Energy Consumption Model (ECM) Utility Allowance Estimate (Version 5/2019)* form, a sample of which is available at <https://www.floridahousing.org/legal/procurements/request-for-qualifications> under the listing for this RFQ;

E. Provide the owner with an ECM study that states the effective date of the utility rates and clearly delineates customer service charges, base rates, volume charges, volume discounts, taxes, surcharges and franchise fees, where applicable, to document the utility estimates calculated for each Building Identification Number (BIN); clearly indicating, if applicable, any sub-metered system operated by the owner; and

F. Provide the owner with a letter that explains how the specific factors in Section Four, Item A., were accounted for in the Energy Consumption Model.

SECTION FIVE

CERTIFICATION

Do not reproduce the language of Section Five in the Response. By inclusion and execution of the statement provided in Section Six of this RFQ, each Respondent certifies that:

A. The Respondent submits this Response without prior understanding, agreement, or connection with any person or entity submitting a separate Response for the same services. However, any agreement with a person or entity with whom the Response is jointly filed and such joint filing is made clear on the face of the Response will be an exception so long as the Response is in all respects fair and without collusion or fraud.

B. Any material submitted in response to this RFQ is a public record pursuant to Ch. 119, F.S., and subject to examination upon request, but only after Florida Housing provides a notice of decision pursuant to s. 120.57(3), F.S., or within 30 days after the Response is opened, whichever is earlier.

C. The Respondent, if awarded a contract under this RFQ, will comply with s. 420.512(5), F.S. For the purpose of s. 420.512(5), F.S., “Prohibited Business Solicitation Communications” is defined by s. 420.503(34), F.S.

D. The Respondent further affirms it is in compliance with s. 420.512(5)(c), F.S.

E. The Respondent is in compliance with s. 287.133(2)(a), F.S.

F. The Respondent is in compliance with s. 448.095, F.S.

G. The Respondent understands and agrees to cooperate with any audits conducted in accordance with the provisions set forth in s. 20.055(5), F.S.

H. The Respondent attests, under penalty of perjury, that it does not meet any of the criteria in s. 287.138(2)(a) – (c), F.S.

I. The Respondent attests, under penalty of perjury, that it does not use coercion for labor or services as defined s. 787.06, F.S.

J. Pursuant to s. 119.0701(2)(b), F.S., the Respondent, if awarded a contract under this RFQ, will be required to comply with public records laws, specifically to:

1. Keep and maintain public records required by Florida Housing to perform the service.

2. Upon request from Florida Housing’s custodian of public records, provide Florida Housing with a copy of the requested records or allow the records to be inspected or copied within a reasonable time at a cost that does not exceed the cost provided in this chapter or as otherwise provided by law.

3. Ensure that public records that are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of the contract term and following completion of the contract if the contractor does not transfer the records to Florida Housing.

4. Upon completion of the contract, transfer, at no cost, to Florida Housing all public records in possession of the contractor or keep and maintain public records required by Florida Housing to perform the service. If the contractor transfers all public records to Florida Housing upon completion of the contract, the contractor shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. If the contractor keeps and maintains public records upon completion of the contract, the contractor shall meet all applicable requirements for retaining public records. All records stored electronically must be provided to Florida Housing, upon request from Florida Housing’s custodian of public records, in a format that is compatible with Florida Housing’s information technology systems.

If the Contractor has questions regarding the application of Chapter 119, Florida Statutes, to the Contractor's duty to provide public records relating to this contract, contact the Corporation Clerk at:

Corporation Clerk
227 N. Bronough Street, Suite 5000
Tallahassee, Florida 32301-1329
Phone: 850.488.4197
E-mail: Corporation.Clerk@floridahousing.org

Notwithstanding anything contained herein to the contrary, the provisions and requirements of this paragraph will only apply if and when the Contractor is acting on behalf of Florida Housing.

K. The Respondent acknowledges that if awarded a contract it will be prohibited from engaging in activities in connection with services related to Florida Housing transactions that produce direct or indirect financial gain for the Respondent other than for the compensation agreed upon in the contract that results from this RFQ, unless that Respondent has Florida Housing's written consent after Florida Housing has been fully informed of such activities in writing.

L. The Respondent acknowledges that if awarded a contract it will be prohibited from engaging in any actual, apparent, or potential conflict of interest. Should any such actual, apparent, or potential conflict of interest come into being subsequent to the effective date of the contract and prior to the conclusion of the contract, the Respondent will provide written notification (Notice of Conflict of Interest) to Florida Housing's Contract Administrator within 10 working days for review by Florida Housing's Executive Director in consultation with the Ethics Officer. If the Respondent is found to be in non-compliance with this provision, any compensation received in connection with this contract will be subject to forfeiture to Florida Housing.

M. The Respondent, in submitting this Response, acknowledges and agrees that the terms and conditions of this RFQ, as well as any modifications thereto, will be incorporated into any contract offered as a result of this RFQ.

N. CERTIFICATION STATEMENT:

FAILURE TO INCLUDE THE CERTIFICATION STATEMENT LOCATED IN SECTION SIX OF THIS RFQ BEARING AN ORIGINAL SIGNATURE WILL RESULT IN REJECTION OF THE RESPONSE.

SECTION SIX

INFORMATION TO BE PROVIDED IN RESPONSE

In providing the following information, restate each item and sub-item (with its letter and number), limit your Response to one attachment. Responses to the items must be included immediately after the restated items without any reference to any appendix.

A. COVER LETTER

Each proposal must be accompanied by a cover letter that contains a general statement of the purpose of submission and includes the following information.

1. The name, job title, address, office and cellular telephone numbers, and e-mail address of a primary contact person, who will be responsible for day-to-day contact with Florida Housing, and any backup personnel who would be accessible if the primary contact cannot be reached.

2. Legal business status (individual, partnership, corporation, etc.) and address and telephone number of the Respondent.

B. GENERAL INFORMATION

1. Provide documentation to show that the Respondent is authorized to do business in the State of Florida. If the Respondent is not a legal entity (e.g., an individual or sole proprietorship), provide a copy of the Respondent's business license issued by the local jurisdiction in Florida in which the Respondent conducts business.

2. Describe the Respondent's ability to provide the services outlined in Section Four of this RFQ and why Respondent is qualified to act as an Energy Consumption Model Utility Allowance Estimate Provider to owners of developments funded by Florida Housing.

3. Describe the Respondent's methodology in developing an Energy Consumption Model Utility Allowance Estimate. Provide a sample Energy Consumption Model Utility Allowance Estimate for a proposed rental housing development and a description of the platform(s) used as the basis for your energy consumption model (i.e., Excel model, whole building simulations). Identify the factors considered in your analysis, such as unit size, building orientation, design and materials, mechanical systems, control systems, appliances, interaction effects between building systems, building location characteristics, weather, occupancy, metering characteristics, comparison to similar buildings or building codes, and utility rate schedules. Note: This may not be a comprehensive list of relevant factors or variables, so please identify any additional factors or variables that may be considered in your analysis.

4. **(Mandatory Item)** Provide copies of the certificate(s) or license(s), as applicable, evidencing that the Respondent and/or staff who will be performing the Energy Consumption Model Utility Allowance Estimate Provider services is a Qualified Professional or is a Licensed Engineer. Note: Failure to include these items will result in rejection of the response.

C. EXPERIENCE

1. Describe the Respondent's experience in conducting affordable housing utility allowance estimates.

2. Provide information on any contract entered into within the last 10 years by the Respondent to provide services similar to those described in Section Four of this RFQ.

3. Provide information on any contract entered into by the Respondent to provide services similar to those described in Section Four of this RFQ that was terminated prior to completion in the last five years. Provide details of such circumstances.

D. QUALIFICATIONS OF PERSONNEL

Provide individual resumes describing relevant degrees, certifications, or experience, no more than five pages in length each, of staff who will be performing the Energy Consumption Model Utility Company Estimate Provider services.

E. FEES

1. Where indicated in Table 1 below, provide the proposed fees for each item. Note: Florida Housing will not accept caveat language. Responses that include caveat language will receive a total score of zero for this section.

2. Fees proposed must include all charges relating to the services required under the contract, including all out-of-pocket expenses, such as telephone, postage and shipping, printing and/or copy costs, and travel, if any.

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TABLE 1 FEES	
Service	Fee
Item #1 – Initial Verification of Data for Electric Allowance Modeling	\$
1 Bedroom	\$
2 Bedroom	\$
2 Bedroom Townhome	\$
3 Bedroom	\$
Subtotal – Item #1 (A)	\$
Item #2 – Initial Verification of Data for Water/Sewer Allowance Modeling	\$
1 Bedroom	\$
2 Bedroom	\$
2 Bedroom Townhome	\$
3 Bedroom	\$
Subtotal – Item #2 (B)	\$
Item #3 – Annual Allowance Update (Electric)*	\$
1 Bedroom	\$
2 Bedroom	\$
2 Bedroom Townhome	\$
3 Bedroom	\$
Subtotal – Item #3 (C)	\$
Item #4 – Annual Allowance Update (Water/Sewer)*	\$
1 Bedroom	\$
2 Bedroom	\$
2 Bedroom Townhome	\$
3 Bedroom	\$
Subtotal – Item #4 (D)	\$
TOTAL (A+B+C+D) =	\$

*Fees for Items #3 and 4 assume no changes from initial data.

F. DRUG-FREE WORKPLACE

If the Respondent has implemented a drug-free workplace program, the Respondent must submit the following certification indicating that it meets all of the requirements of s. 287.087, F.S.:

I hereby certify on behalf of the Respondent, under the terms of RFQ 2025-09, that the Respondent has implemented a drug-free workplace program pursuant to s. 287.087, F.S.

Authorized Signature: _____

Print Name: _____

Print Title: _____

G. MINORITY BUSINESS ENTERPRISE

If the Respondent is a minority business enterprise as defined in s. 288.703, F.S., the Respondent must submit the following certification:

I hereby certify on behalf of the Respondent, under the terms of RFQ 2025-09, that the Respondent is a “minority business enterprise” as defined in s. 288.703(3), F.S.

Authorized Signature: _____

Print Name: _____

Print Title: _____

H. CERTIFICATION (Mandatory Item)

THE FOLLOWING WILL BE REPEATED IN THE RESPONDENT’S RESPONSE AND SIGNED BY AN INDIVIDUAL AUTHORIZED TO BIND THE RESPONDENT. THIS IS A MANDATORY ITEM. FAILURE TO INCLUDE THE CERTIFICATION STATEMENT BEARING AN ORIGINAL SIGNATURE, EXACTLY AS STATED AND WITHOUT ANY ADDITIONS, DELETIONS OR CAVEAT LANGUAGE, WILL RESULT IN REJECTION OF THE RESPONSE.

“I agree to abide by all conditions of RFQ 2025-09 and certify that all information provided in this Response is true and correct, that I am authorized to sign this Response as the Respondent and that I am in compliance with all requirements of the RFQ, including but not limited to, the certification requirements stated in Section Five of this RFQ.”

Authorized Signature (Original)

Print Name and Title

SECTION SEVEN EVALUATION PROCESS

The individual Committee members will independently evaluate the Responses by reviewing the answers to each of the items identified in Section Six of this RFQ and assigning points up to the maximum points allowed for each item. The points available for items in Section Six are to be evaluated are as follows:

<u>Item Reference</u>	<u>Maximum Points</u>
B. General Information.....	20
C. Experience.....	30
D. Qualifications of Personnel.....	30
E. Fees.....	20
Total Points Available.....	100

For the Fee Section, the Respondent with the lowest proposed total fee will receive the maximum allowable points (20 points). The remaining respondents will receive a percentage of the maximum points, rounded to the nearest whole number, based on the following formula:

Lowest Proposed Total Fee ÷ Current Respondent's Proposed Total Fee	=	%	x	20	=	Total Points Awarded for "Fees" (Rounded to the nearest whole number)
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In the event of a tie, Florida Housing will give preference in the award process to the Response certifying a drug-free workplace has been implemented in accordance with s. 287.087, F.S. If a tie continues to exist, Florida Housing will give preference to minority business enterprises as defined in s. 288.703, F.S.

The Committee will conduct one or more public meetings during which members will discuss their evaluations and develop a recommendation or series of recommendations to the Board. The Committee's recommendation will be based on the cumulative scoring and information gathered from the non-scored items. The Board may use the Responses, the Committee's scoring, the non-scored items in the Responses, any other information or recommendation provided by the Committee or staff, and any other information the Board deems relevant in its selection of Respondents to whom to award a contract. ¹

¹ Pursuant to s. 287.05701 F.S., Florida Housing may not request documentation of or consider a vendor's social, political, or ideological interest when determining if the vendor is a responsible vendor. Additionally, Florida Housing may not give preference to a vendor based on the vendor's social, political, or ideological interests.

SECTION EIGHT
AWARD PROCESS

Florida Housing will provide notice of its decision, or intended decision, for this RFQ on Florida Housing's Website the next business day after the applicable Board vote. After posting, an unsuccessful applicant may file a notice of protest and a formal written protest in accordance with s. 120.57(3), F.S. Failure to file a protest within the time prescribed in s. 120.57(3), F.S. or failure to post the bond or other security required by law within the time allowed for filing a bond will constitute a waiver of proceedings under Ch. 120, F.S.

RFQ 2025-09 - Pool of Energy Consumption Model Utility Allowance Estimate Providers

		Diamond Property Consultants, Inc., in partnership with Enercon Services, Inc. ★				Energy Bees, LLC ★				Energy Diagnostics, Inc. ★				KN Consultants LLC ★			
SECTION SIX ITEM REFERENCE	Max Score	Matt	Joketra	George	Total	Matt	Joketra	George	Total	Matt	Joketra	George	Total	Matt	Joketra	George	Total
B. General Information	20	20	20	20	60	16	19	20	55	16	18	20	54	17	20	20	57
C. Experience	30	30	30	30	90	25	25	25	75	15	22	20	57	25	30	30	85
D. Qualifications of Personnel	30	30	30	30	90	25	30	30	85	20	28	30	78	25	30	30	85
E. Fees	20	0	0	0	0	0	0	0	0	20	20	20	60	0	0	0	0
TOTAL POINTS	100	80	80	80	240	66	74	75	215	71	88	90	249	67	80	80	227
A. Cover Letter	Y/N	Y	Y	Y		Y	Y	Y		Y	Y	Y		Y	Y	Y	
F. Drug-Free Workplace	Y/N	Y	Y	Y		Y	Y	Y		Y	Y	Y		Y	Y	Y	
G. Minority Business Enterprise	Y/N	N	N	N		N	N	N		N	N	N		N	N	N	
H. Certification	Y/N	Y	Y	Y		Y	Y	Y		Y	Y	Y		Y	Y	Y	
		Matern Professional Engineering ★				UCF - Florida Solar Energy Center ★				Utilotus, LLC d/b/a Zappling ★				Walker Blue, LLC ★			
SECTION SIX ITEM REFERENCE	Max Score	Matt	Joketra	George	Total	Matt	Joketra	George	Total	Matt	Joketra	George	Total	Matt	Joketra	George	Total
B. General Information	20	20	20	20	60	17	15	18	50	17	20	20	57	20	18	20	58
C. Experience	30	30	30	30	90	23	28	30	81	25	30	30	85	25	29	30	84
D. Qualifications of Personnel	30	30	30	30	90	30	30	30	90	30	30	30	90	30	29	30	89
E. Fees	20	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0	0
TOTAL POINTS	100	80	80	80	240	70	73	78	221	72	80	80	232	75	76	80	231
A. Cover Letter	Y/N	Y	Y	Y		Y	Y	Y		Y	Y	Y		Y	Y	Y	
F. Drug-Free Workplace	Y/N	Y	Y	Y		Y	Y	Y		Y	Y	Y		Y	Y	Y	
G. Minority Business Enterprise	Y/N	N	N	N		N	N	N		N	N	N		N	N	N	
H. Certification	Y/N	Y	Y	Y		Y	Y	Y		Y	Y	Y		Y	Y	Y	